GRADE 9 ISLAMIC RELIGIOUS EDUCATION NOTES COMPLETE

STRAND 1: QURAN SURAH AL HUJURAT

Surah Al-Hujurat (The Rooms) is the 49th chapter of the Quran, composed of 18 verses (ayat). It is classified as a Madinan surah, meaning it was revealed after the migration (Hijrah) of the Prophet Muhammad (PBUH) to Medina. This surah is pivotal in addressing various aspects of social ethics, morality, and interpersonal relationships within the Muslim community, emphasizing the necessity of unity, respect, and justice.

Key Themes and Lessons from Surah Al-Hujurat:

1. **Respect for the Prophet and Authority**: The surah begins by instructing believers to maintain the utmost respect for the Prophet Muhammad (PBUH). It is highlighted that no one should place their opinion above the guidance of Allah and His Messenger, nor raise their voice in his presence, as doing so undermines both the spiritual integrity of the believer and the sacred authority of the Prophet (49:1–2).
2. **Avoiding Slander and Backbiting**: One of the major social evils addressed in this surah is the act of slander and backbiting. The surah strongly condemns gossip, false assumptions, and the spread of rumors, which can harm individuals and divide the community. Believers are urged to refrain from such actions as they breed discord (49:11–12).
3. **The Importance of Brotherhood**: Surah Al-Hujurat underscores the significance of maintaining peace among Muslims. It encourages believers to resolve conflicts and disputes amicably, urging reconciliation between conflicting parties within the community (49:9–10). This promotes a spirit of mutual respect and compassion, as well as the importance of forgiveness.
4. **Equality of All Believers**: One of the foundational principles of this surah is the assertion that all Muslims, regardless of race, ethnicity, or social standing, are equal in the eyes of Allah. The only criterion for superiority is piety and righteousness, not worldly wealth or status (49:13). This message advocates for the dignity of every individual, regardless of background.

5. **Avoiding Conflict**: The surah teaches that conflicts should be avoided whenever possible. However, if disputes do arise, they should be resolved through justice, fairness, and adherence to the commandments of Allah (49:9–10). Ensuring peace and harmony within the community is vital for the stability of the Ummah (the global Muslim community).
6. **The Role of Faith in Society**: The surah serves as a reminder that faith is not simply an outward show but must be deeply ingrained in one's heart and actions. Believers are reminded to purify their intentions and to follow the teachings of Islam with sincerity (49:7).

MEANING OF VERSES IN QURAN SURAH AL HUJURAT

Surah Al-Hujurat consists of 18 verses, each imparting profound lessons about social etiquette, unity, respect, and morality within the Muslim community. Below is a deeper explanation of the meaning of each verse:

1. **"O you who have believed, do not put [yourselves] before Allah and His Messenger but fear Allah. Indeed, Allah is Hearing and Knowing."**

   This verse emphasizes that believers must respect the authority of Allah and His Messenger and not act in ways that contradict divine commands. It serves as a reminder that Allah is fully aware of human actions and will hold individuals accountable (49:1).

2. **"O you who have believed, do not raise your voices above the voice of the Prophet or be loud to him in speech, like the loudness of some of you to others, lest your deeds become worthless while you do not perceive."**

Believers are cautioned against speaking disrespectfully in the presence of the Prophet. Raising one's voice in such a manner not only shows a lack of respect but also risks invalidating one's good deeds. Humility and reverence are crucial when engaging with those in authority (49:2).

3. **"Indeed, those who lower their voices before the Messenger of Allah are the ones whose hearts Allah has tested for righteousness. For them is forgiveness and great reward."**

This verse praises those who show respect and humility in the presence of the Prophet Muhammad (PBUH). Such individuals are rewarded with forgiveness and a significant reward from Allah for their righteous conduct (49:3).

4. **"Indeed, those who call you, [O Muhammad], from behind the rooms – most of them do not use reason."**

The verse highlights the behavior of individuals who would call the Prophet from outside his private quarters in an unthoughtful manner. It teaches the importance of respect, proper decorum, and wisdom when approaching a leader or authority figure (49:4).

5. **"And if they had been patient until you could come out to them, it would have been better for them. And Allah is Forgiving and Merciful."**

This verse advises patience and proper timing when seeking the attention of the Prophet. Allah's forgiveness and mercy are assured for those who make amends and approach with respect (49:5).

6. **"O you who have believed, if there comes to you a disobedient person with news, investigate, lest you harm a people out of ignorance and become, over what you have done, regretful."**

Believers are instructed to verify the truth of any news before acting on it, especially if it comes from unreliable sources. This verse underscores the importance of caution and avoiding harm caused by hastily accepted information (49:6).

7. **"And know that among you is the Messenger of Allah. If he were to obey you in much of the matter, you would be in difficulty. But Allah has endeared to you the faith and has made it beautiful in your hearts and has made hateful to you disbelief, immorality, and disobedience. Those are the rightly guided."**

The verse stresses the importance of trusting the Prophet's judgment, as his guidance is divinely inspired. It highlights the value of faith and righteousness and how these qualities have been made beloved to the true believers (49:7).

8. **"[This is] as a favor from Allah and a mercy. And Allah is Knowing and Wise."**

The verse acknowledges that the guidance and blessings of Allah, particularly in leading believers towards faith, is a mercy from Him. Allah's wisdom and knowledge are underscored in shaping the hearts of His servants (49:8).

9. **"And if two factions among the believers should fight, then make peace between them. But if one of them wrongs the other, then fight against the one that wrongs until it returns to the command of Allah. And if it returns, then make peace between them in justice and act justly. Indeed, Allah loves those who act justly."**

This verse provides a guideline for resolving conflicts within the Muslim community. Efforts must be made to reconcile disputing parties, and justice must be maintained when one party is in the wrong (49:9-10).

10. **"The believers are but brothers, so make peace between your brothers. And fear Allah that you may receive mercy."**

Unity is emphasized in this verse, with all Muslims regarded as brothers. Efforts to reconcile and restore peace among them are vital for the cohesion of the community (49:10).

11. **"O you who have believed, let not a people ridicule [another] people; perhaps they may be better than them. And let not women ridicule [other] women; perhaps they may be better than them. And do not insult one another and do not call each other by [offensive] nicknames. Wretched is the name of disobedience after faith."**

Believers are prohibited from mocking or insulting others based on race, gender, or status. The true measure of a person's worth lies in their faith and righteous actions (49:11).

12. **"O you who have believed, avoid much of suspicion. Indeed, some suspicion is sin. And do not spy or backbite each other. Would one of you like to eat the flesh of his brother when dead? You would detest it. And fear Allah; indeed, Allah is Accepting of repentance and Merciful."**

The Quran warns against suspicion, spying, and backbiting, equating backbiting to the repugnant act of consuming the flesh of a dead brother. Believers are urged to seek repentance for such sins (49:12).

13. **"O mankind, indeed We have created you from male and female and made you peoples and tribes that you may know one another. Indeed, the most noble of you in the sight of Allah is the most righteous of you."**

This verse emphasizes the equality of all human beings, regardless of race or tribe. True nobility is defined by piety, not by ethnicity, lineage, or social status (49:13).

14. **"The Bedouins say, 'We have believed.' Say, 'You have not yet believed; but say, 'We have submitted,' for faith has not yet entered your hearts.'"**

Mere outward declarations of belief are not enough. True faith must manifest in the heart and actions, and it is only then that someone can be regarded as a true believer (49:14).

15. **"The believers are only those who have believed in Allah and His Messenger and, when they are together with him on a matter requiring collective action, do not depart until they have given their consent."**

True believers are those who are committed to collective action and decision-making in line with the teachings of Allah and His Messenger (49:15).

16. **"Do you inform Allah of your religion while Allah knows whatever is in the heavens and whatever is on the earth?"**

This verse reminds believers that Allah is fully aware of their inner state and actions, and no outward declaration of faith can deceive Him (49:16).

17. **"They regard as a favor to you that they have accepted Islam. Say, 'Do not regard your Islam as a favor to me. Rather, Allah has favored you that He has guided you to the faith.'"**

The verse corrects those who view their acceptance of Islam as a favor to the Prophet, emphasizing that the real favor is from Allah, who has guided them to the truth (49:17).

18. **"Indeed, Allah knows the unseen of the heavens and the earth. And Allah is Seeing of what you do."**

The final verse of the surah reminds believers that Allah's knowledge encompasses everything, and every action is seen and known by Him. Nothing is hidden from Allah (49:18).

LESSONS LEARNED FROM QURAN SURAH AL HUJURAT

1. **Respect for Allah and His Messenger**
   - *Lesson*: Believers must prioritize the commands of Allah and His Messenger over personal desires and opinions.
   - *Reference*: 49:1
2. **Importance of Reverence and Humility**
   - *Lesson*: Believers should avoid speaking disrespectfully in the presence of authority, showing humility in their speech and conduct.
   - *Reference*: 49:2
3. **Avoiding Backbiting, Slander, and Gossip**
   - *Lesson*: Backbiting, slander, and gossip harm relationships and cause division in the community. Believers must speak truthfully and beneficially.
   - *Reference*: 49:12
4. **Conflict Resolution and Reconciliation**

- *Lesson*: Muslims should strive for peace and reconciliation, acting with justice to resolve disputes.
- *Reference*: 49:9-10

5. **Avoiding Suspicion and Negative Assumptions**
    - *Lesson*: Believers should avoid making unjust assumptions and suspicions about others.
    - *Reference*: 49:12
6. **Unity and Brotherhood Among Muslims**
    - *Lesson*: Muslims are brothers and must work to maintain unity and peace within the community.
    - *Reference*: 49:10
7. **Respect for Diversity in Society**
    - *Lesson*: Diversity is a divine blessing, and the most honorable person in Allah's sight is the one with the most piety.
    - *Reference*: 49:13
8. **The Rightful Authority of the Prophet**
    - *Lesson*: Muslims must respect and follow the Prophet Muhammad (PBUH) as a divinely appointed leader.
    - *Reference*: 49:7
9. **Guarding Against Pride and Arrogance**
    - *Lesson*: True belief is a matter of the heart and should be expressed humbly, not as a boastful declaration.
    - *Reference*: 49:14
10. **The Importance of Truth and Justice**

- *Lesson*: Justice must be upheld in all situations, particularly when resolving conflicts and addressing wrongdoing.
- *Reference*: 49:9

11. **The Danger of False or Hasty Judgment**

- *Lesson*: Hasty judgments based on unreliable information should be avoided. Investigation and careful consideration are essential.
- *Reference*: 49:6

12. **The Higher Purpose of Faith**

- *Lesson*: Faith is an inner commitment that should manifest in righteous actions, not just outward declarations.
- *Reference*: 49:16

13. **The Power of Sincere Repentance**

- *Lesson*: Allah is always ready to forgive those who sincerely repent and seek His mercy.
- *Reference*: 49:12

STRAND 2: HADITH ULUM AL HADITH

‘Introduction to ‘Ulum al-Hadith:

‘Ulum al-Hadith, which translates to "The Sciences of Hadith," refers to the vast and specialized body of knowledge dedicated to the study of the sayings, actions, and approvals of the Prophet Muhammad (PBUH). Hadith literature is regarded as one of the most important sources of guidance for Muslims, second only to the Qur'an. It provides detailed insights into the practices, teachings, and everyday actions of the Prophet (PBUH), offering practical examples for Muslims to follow. The study of Hadith helps to preserve the authentic teachings of Islam and aids in the understanding of the Qur’an, which sometimes requires further explanation for better comprehension. The science of Hadith involves a systematic and scholarly approach to ensuring the authenticity and reliability of the narratives concerning the Prophet's life.

Key Concepts in ‘Ulum al-Hadith:

1. Definition of Hadith:

- **Hadith** refers to the recorded reports about the words, actions, approvals, and disapprovals of the Prophet Muhammad (PBUH). These reports have been transmitted through generations by the companions of the Prophet and their successors, the Tabi’un, until they were collected in the classical Hadith compilations.
- The **plural** of Hadith is **Ahadith**. These reports are vital in forming a comprehensive understanding of Islam, complementing the teachings found in the Qur'an.

2. Importance of Hadith:

- **Clarification of Quranic Verses**: The Hadith literature plays a crucial role in interpreting and explaining the Quranic verses. While the Qur'an provides general guidance, the Hadith offers context, details, and practical implementation of the commandments found in the Quran. Without Hadith, the full understanding of many aspects of Islam would remain unclear.
- **Guidance for Daily Life and Religious Practices**: The Hadith offers detailed advice on a wide range of topics, from the simplest aspects of daily life to complex legal matters. It provides practical examples on how to perform acts of worship, such as prayer, fasting, and charity, as well as guidelines on behavior, ethics, and interpersonal relationships. This guidance is essential for Muslims in fulfilling their religious duties.
- **Secondary Source of Islamic Law**: After the Qur'an, the Hadith is the second most important source of Islamic law (Shari'ah). The legal rulings in the Hadith help establish what is permissible (halal) and forbidden (haram) in Islam, filling in the gaps left by the Qur'an. The Hadith is often used to clarify the meanings of Quranic injunctions or to provide specific rulings not explicitly mentioned in the Qur'an.
- **Practical Example of Implementing Islamic Teachings**: The life of Prophet Muhammad (PBUH) serves as a perfect model for Muslims to emulate. His actions, decisions, and responses to various situations are captured in Hadith literature, offering Muslims concrete examples of how to live righteous lives in accordance with Islamic principles.

3. Components of a Hadith:

A typical Hadith is composed of two essential parts: the **Isnad** and the **Matn**.

- **Isnad (The Chain of Narrators)**:
  The **Isnad** refers to the chain of narrators who transmitted the Hadith. It traces the report from the Prophet Muhammad (PBUH) all the way down to the person who collected and recorded the Hadith. The reliability of the Isnad is of utmost importance in assessing the authenticity of the Hadith. The scholars of Hadith used a highly detailed methodology to scrutinize the narrators, ensuring that the individuals in the chain were trustworthy, known for their memory, and had not been involved in any disreputable actions that would taint the narration.
- The chain typically starts with the narrator who directly heard the Hadith from one of the companions of the Prophet Muhammad (PBUH) and ends with the compiler of the Hadith collection. For example, in the famous collection of **Sahih al-Bukhari**, the chain of narrators leads from Imam Bukhari back to the Prophet Muhammad (PBUH).
  - **Key aspects of Isnad**:

- **Al-‘Adalat (Integrity of the narrators)**: The narrators must be morally upright and pious.
- **Al-Dabt (Accuracy of the narrators)**: The narrators should have excellent memory and precise recall.
- **Al-Mutaba’at (Consistency of the narration)**: The Hadith must not contradict other established narrations.
- **Al-Wasf (Continuity of the chain)**: The chain should be continuous without breaks between narrators.

- **Matn (The Content or Text)**:
  The **Matn** refers to the actual content of the Hadith—the words, actions, or approvals of the Prophet Muhammad (PBUH). It is the message conveyed by the Hadith, which could be a direct statement, an action, or even a tacit approval of something done by others in the presence of the Prophet.

- The Matn provides insights into the teachings of Islam, ranging from legal matters to moral guidance, and is considered the most important part of the Hadith. Scholars assess the Matn to ensure that it does not contradict other established religious texts or principles of Islam. A Matn that is inconsistent with the core values of Islam is rejected as weak or fabricated.
    - **Key aspects of Matn**:
- **Authenticity**: The content of the Matn must align with established Quranic principles and teachings.
- **Coherence**: The content should not contradict other narrations or widely accepted Islamic practices.
- **Contextual Relevance**: The Hadith should be relevant and consistent with the circumstances in which it was reported.

Classification of Hadith:

The science of Hadith also involves classifying Hadith into categories based on the reliability of the Isnad (chain of narrators) and the authenticity of the Matn (content). The major classifications of Hadith are:

1. **Sahih (Authentic)**:
   This is a Hadith whose Isnad is continuous, with all narrators being trustworthy, and the Matn is free from any contradictions. A Sahih Hadith is regarded as the most authentic and reliable form of narration. The collections of **Sahih al-Bukhari** and **Sahih Muslim** are considered the most authentic compilations of Hadith in Sunni Islam.
2. **Hasan (Good)**:
   This is a Hadith that is generally sound, but it may have a slight weakness in the chain of narrators. Despite this, it does not affect the overall reliability, and the Hadith is still considered reliable for use in establishing rulings and understanding Islamic practices.
3. **Da'if (Weak)**:
   A Da'if Hadith has significant issues with its Isnad, such as a missing link in the chain or an

unreliable narrator. While these Hadiths are not used to establish religious rulings, they can still offer general guidance or be used in non-legal matters.

4. **Mawdu' (Fabricated)**:

   This refers to Hadiths that have been intentionally fabricated or falsely attributed to the Prophet Muhammad (PBUH). Such Hadiths are completely rejected, and scholars work diligently to identify and discard these from the body of Hadith literature.

The Role of ‘Ulum al-Hadith in Preserving the Authenticity of Islam:

The study of ‘Ulum al-Hadith plays a crucial role in preserving the authenticity of the teachings of Islam. As Islam is a religion based on both the Quran and the Hadith, ensuring that the Hadith is accurately transmitted and correctly understood is of paramount importance. The rigorous methodologies established by Hadith scholars help protect the community from the inclusion of fabricated or weak reports, ensuring that only authentic teachings of the Prophet Muhammad (PBUH) are followed.

Scholars of Hadith, through centuries of meticulous work, have laid down principles of evaluation that remain central to Islamic scholarship today. The careful analysis of narrations ensures that Muslims adhere to the true teachings of their faith, guided by the Prophet's words and actions

1. **Types of Hadith**:
    - **Sahih** (authentic): A hadith that has a reliable chain of narrators, free from defects, and does not contradict established principles of Islam.
    - **Hasan** (good): A hadith that is reliable but slightly weaker than a Sahih hadith in terms of chain or memory of narrators.
    - **Da'if** (weak): A hadith with a break in its chain, a weak narrator, or contradictions that make it unreliable.
    - **Mawdu‘** (fabricated): A hadith that is not authentically attributed to the Prophet Muhammad (PBUH) and was intentionally fabricated.
    - **Qudsi**: A category of hadith in which the words are the Prophet’s, but the meaning is attributed to Allah.
2. **Categories of Hadith Narrators**:
    - **Sahabah** (Companions of the Prophet): Those who directly received the teachings from the Prophet Muhammad (PBUH) and conveyed them.
    - **Tabi‘un** (Successors): Those who came after the companions and narrated hadiths from the companions.
    - **Atba‘ al-Tabi‘in** (Followers of the Successors): Those who narrated from the Tabi‘un.
3. **The Science of Authentication (Ilm al-Jarh wa al-Ta‘dil)**:
    - This science involves evaluating the reliability and integrity of the narrators within the isnad. Scholars classified narrators as trustworthy or unreliable based on their memory, moral character, and adherence to the truth.
    - **Jarh** (discrediting) refers to declaring a narrator unreliable, while **Ta‘dil** (validating) refers to declaring a narrator trustworthy.

4. **Hadith Collections**:
    - Several renowned scholars compiled hadith collections, among which the most famous are:
        - **Sahih al-Bukhari**: A compilation by Imam Bukhari, widely regarded as the most authentic collection.
        - **Sahih Muslim**: A collection by Imam Muslim, also considered highly authentic.
        - **Sunan Abu Dawood**: A collection focused on legal rulings.
        - **Sunan an-Nasa'i**: Another collection that focuses on hadiths relevant to Islamic law and practice.
        - **Jami' at-Tirmidhi**: A compilation that classifies hadiths based on their authenticity.
        - **Sunan Ibn Majah**: Another significant collection of hadiths that includes various narrations.
5. **The Role of Hadith in Islamic Jurisprudence (Fiqh)**:
    - Hadith is a major source of Islamic law and provides context and explanation for Quranic verses. Scholars use hadith to derive rulings, clarify ambiguities in the Qur'an, and understand the Sunnah (the practice) of the Prophet.
    - **Fiqh** (Islamic jurisprudence) is built upon both the Qur'an and the Hadith. Scholars study the hadith to understand how to apply Islamic principles to modern situations.
6. **Principles of Evaluating Hadith**:
    - **Authenticity**: Ensuring the hadith has a reliable chain of transmission and is free from fabrication or distortion.
    - **Consistency**: Verifying that the matn (content) does not contradict established Islamic principles or other reliable narrations.
    - **Context**: Understanding the historical and social context in

which the hadith was said, to apply its meaning correctly.

7. **Famous Hadith Scholars**:

- **Imam al-Bukhari**: Known for compiling **Sahih al-Bukhari**, the most authentic collection of hadiths.
- **Imam Muslim**: Compiled **Sahih Muslim**, another very authentic collection.
- **Imam Malik**: Compiled **Muwatta'**, a collection that combines hadith with the practices of the people of Medina.
- **Imam Abu Dawood**: Compiled **Sunan Abu Dawood**, a collection that includes hadiths focusing on legal issues.
- **Imam an-Nasa'i**: Compiled **Sunan an-Nasa'i**, a collection of hadiths primarily concerning practical issues.

Major Branches of 'Ulum al-Hadith:

1. **Ilm al-Hadith al-Sahih**: Study of authentic hadiths and the methodology for determining their authenticity.
2. **Ilm al-Maqtu'**: The study of narrations that are broken or incomplete in terms of the chain of transmission.
3. **Ilm al-Muhaddithin**: The science of studying the lives and biographies of the narrators of hadith.
4. **Ilm al-Matn**: The study of the content of hadith, including its meaning, clarity, and any contradictions with other hadiths or the Qur'an.

UNITY

The concept of **unity** is emphasized throughout Islamic teachings, including in the **Hadith** (sayings of the Prophet Muhammad, peace be upon him). Unity among Muslims is crucial for preserving the strength, integrity, and cohesiveness of the Muslim community, or **Ummah**. Several hadiths highlight the importance of unity, cooperation, and mutual respect. Here are some key hadiths on unity:

1. Hadith on Brotherhood and Unity

- **Narrated by Abu Huraira (RA):**
  The Prophet (PBUH) said, "The example of the believers in their mutual love, mercy, and compassion is like that of a body. When one part of the body feels pain, the whole body feels the pain in sleeplessness and fever."
  (Sahih al-Bukhari, 6011)
  - **Lesson**: This hadith emphasizes the interconnectedness of the Muslim community. When one member of the community is in distress or suffering, the entire community should feel the pain and respond with compassion and support.

2. Hadith on Division and Disunity

- **Narrated by Ibn Umar (RA):**
  The Prophet (PBUH) said, "Whoever separates from the Jama'ah (community) even by a handspan, then he has removed the collar of Islam from his neck."
  (Sahih Muslim, 1846)
  - **Lesson**: This hadith warns against division and splitting from the Muslim community. Unity is a central value, and even

small divisions can lead to a weakening of faith and belonging.

3. Hadith on Avoiding Disputes

- **Narrated by Abu Huraira (RA):**
  The Prophet (PBUH) said, "Do not envy one another, do not hate one another, and do not turn your backs on one another. And be, O servants of Allah, brothers."
  (Sahih Muslim, 2564)
  - **Lesson**: This hadith teaches the importance of mutual respect and harmony. Envy, hatred, and turning away from each other only lead to disunity and discord. Instead, Muslims should act as brothers and sisters, supporting and caring for one another.

4. Hadith on the Strength of Unity

- **Narrated by Abdullah bin Umar (RA):**
  The Prophet (PBUH) said, "The believer to the believer is like a building whose different parts reinforce each other." **(Sahih al-Bukhari, 6011)**
  - **Lesson**: This hadith illustrates the strength and solidarity that should exist within the Muslim community. Just like the parts of a building that support and strengthen each other, Muslims should support one another in both times of ease and hardship.

5. Hadith on the Importance of the Community's Unity

- **Narrated by Abu Huraira (RA):**
  The Prophet (PBUH) said, "Allah will not look at the one who separates from the community."
  (Sahih Muslim, 1854)
  - **Lesson**: This hadith highlights the importance of staying united with the Muslim community. Islam teaches that when a person

isolates themselves or creates division, it is a matter of grave concern in the sight of Allah.

6. Hadith on Avoiding Division and Following the Quran and Sunnah

- **Narrated by Ali bin Abi Talib (RA):**
  The Prophet (PBUH) said, "Whoever lives to see this situation, when there are divisions, then let him hold to the Book of Allah and my Sunnah, and he will be safe." **(Sunan Ibn Majah, 3952)**
  - **Lesson**: This hadith stresses the importance of following the Quran and the Sunnah (the practice of the Prophet) in times of division. Unity is achieved through adherence to the foundational teachings of Islam.

7. Hadith on Collective Worship and Unity

- **Narrated by Abu Huraira (RA):**
  The Prophet (PBUH) said, "The prayer of a man in congregation is twenty-seven times more rewarding than his prayer at home or in his shop."
  (Sahih al-Bukhari, 619)
  - **Lesson**: This hadith emphasizes the importance of unity in worship, particularly in congregational prayer. Praying together as a community enhances the sense of brotherhood and strengthens the bonds of unity among Muslims.

8. Hadith on Cooperation for the Greater Good

- **Narrated by Abu Musa (RA):**
  The Prophet (PBUH) said, "A believer to another believer is like a building, part of it supports the other."
  (Sahih al-Bukhari, 6010)
  - **Lesson**: This hadith highlights the mutual support Muslims should offer each other. A strong community is built on

cooperation, and each individual plays a part in supporting the whole.

9. Hadith on Loyalty to the Muslim Ummah

- **Narrated by Anas bin Malik (RA):**
  The Prophet (PBUH) said, "None of you truly believes until he wishes for his brother what he wishes for himself." **(Sahih al-Bukhari, 13)**
    - **Lesson**: This hadith reinforces the principle of mutual care and concern within the Muslim community. True belief is reflected in the love and loyalty one has for fellow Muslims, wishing them well just as one wishes for themselves.

AVOIDANCE OF ILL MOTIVES

In Islam, avoiding ill motives such as jealousy, hatred, arrogance, and suspicion is emphasized in several hadiths. These negative emotions and intentions can lead to division, sin, and harm within the community. The Prophet Muhammad (PBUH) warned against such ill motives, guiding Muslims to purify their hearts and maintain a positive and sincere attitude towards others. Here are some key hadiths on avoiding ill motives:

1. Hadith on the Danger of Jealousy (Hasad)

- **Narrated by Abu Huraira (RA):**
  The Prophet (PBUH) said, "Beware! Jealousy consumes good deeds just as fire consumes wood or grass."
  (Sunan Abu Dawood, 4903)
  - **Lesson**: Jealousy, or **hasad**, is a harmful emotion that can destroy one's good deeds. Instead of feeling envious, Muslims are encouraged to pray for the well- being and success of others. The Prophet (PBUH) taught that jealousy is corrosive to personal spirituality and to the unity of the community.

2. Hadith on Avoiding Hatred

- **Narrated by Abu Huraira (RA):**
  The Prophet (PBUH) said, "None of you truly believes until he loves for his brother what he loves for himself."
  (Sahih al-Bukhari, 13)
  - **Lesson**: The Prophet (PBUH) emphasizes the importance of eliminating ill feelings like hatred. Believers are instructed to cultivate a sense of love and goodwill towards others, rather than

harboring ill will or animosity.

3. Hadith on Avoiding Arrogance and Pride

- **Narrated by Abdullah ibn Mas'ud (RA):**
  The Prophet (PBUH) said, "No one with an atom's weight of arrogance in his heart will enter Paradise." A man said, "O Messenger of Allah, a man loves to have nice clothes and nice shoes." The Prophet (PBUH) replied, "Allah is beautiful and loves beauty. Arrogance means rejecting the truth and looking down upon people."
  (Sahih Muslim, 91)
  - **Lesson**: **Kibr** (arrogance) is a destructive ill motive that prevents one from entering Paradise. The Prophet (PBUH) clarifies that it is not wrong to take care of one's appearance, but arrogance involves rejecting the truth and belittling others. Muslims are warned against feelings of superiority over others, which often stem from pride and an inflated sense of self.

4. Hadith on Avoiding Suspicion (Dhan)

- **Narrated by Abu Huraira (RA):**
  The Prophet (PBUH) said, "Beware of suspicion, for suspicion is the worst of false tales. And do not spy on one another, and do not backbite one another. Would any of you like to eat the flesh of his dead brother? You would detest it. And fear Allah; indeed, Allah is Accepting of repentance, Merciful."
  (Sahih Muslim, 2563)
  - **Lesson**: **Sufishon (dhan)** or harboring negative thoughts about others without proof can lead to false accusations and mistrust within the community. The Prophet (PBUH) warns against suspicion, emphasizing the importance of having a positive and charitable view of others, and highlights the destructive impact of

backbiting and spying.

5. Hadith on the Danger of Malice (Buhtan)

- **Narrated by Abu Huraira (RA):**
  The Prophet (PBUH) said, "Do not hate one another, do not turn your backs on one another, and do not envy one another. And be, O servants of Allah, brothers."
  (Sahih Muslim, 2564)
  - **Lesson**: The Prophet (PBUH) addresses the destructive effects of malice, envy, and hatred. Ill motives such as these can lead to division within the community. He encourages believers to adopt attitudes of love and brotherhood, which foster mutual respect and harmony.

6. Hadith on the Importance of Purifying the Heart

- **Narrated by Abu Huraira (RA):**
  The Prophet (PBUH) said, "Allah does not look at your bodies or your appearances but He looks at your hearts and your deeds."
  (Sahih Muslim, 2564)
  - **Lesson**: This hadith highlights the importance of sincerity and purity of intention. While outward actions matter, it is the condition of the heart that Allah truly cares about. The Prophet (PBUH) encourages Muslims to purify their hearts from ill motives such as hypocrisy, jealousy, and hatred, and to focus on cultivating good intentions and deeds.

7. Hadith on Avoiding the Ill Motive of Seeking Praise

- **Narrated by Abu Huraira (RA):**
  The Prophet (PBUH) said, "Whoever shows off, Allah will expose him. Whoever does things for the sake of showing off, Allah will

expose him on the Day of Judgment." **(Sahih al-Bukhari, 6130)**

- **Lesson**: Seeking praise from others for one's good deeds or actions, known as **riya'**, is a form of showing off that stems from ill motives. This hadith warns that those who act with the intention of receiving admiration or praise from people will be exposed on the Day of Judgment. Muslims are encouraged to act sincerely for the sake of Allah, not for worldly recognition.

8. Hadith on the Importance of Sincerity

- **Narrated by Umar ibn Al-Khattab (RA):**
  The Prophet (PBUH) said, "Actions are judged by their intentions, and each person will be rewarded according to what he intended."
  (Sahih al-Bukhari, 1)
  - **Lesson**: This famous hadith underscores that intentions are the key to the value of any action. If one's actions are driven by pure and sincere intentions for the sake of Allah, they will be rewarded accordingly. Conversely, actions done with ill or selfish motives will not hold the same weight in the sight of Allah.

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STRAND 3: PILLARS OF IMAN
BELIEFS IN THE LAST DAY

The **Pillars of Iman** (faith) are the six fundamental beliefs in Islam that every Muslim must have faith in. One of these pillars is the belief in the **Last Day** (known as **Yawm al-Qiyama**, the Day of Resurrection). This belief holds great significance in Islam, and it influences the way Muslims lead their lives, making them conscious of their actions, choices, and accountability before Allah.

The Belief in the Last Day (Yawm al-Qiyama)

The belief in the **Last Day** encompasses several important aspects:

1. Resurrection and Accountability

- Muslims believe that on the Last Day, all people will be resurrected from their graves to face Allah for judgment. Their deeds, both good and bad, will be presented before them, and they will be held accountable for how they lived their lives.
- **Quranic reference**:
  "And the Horn will be blown; and at once from the graves to their Lord they will hasten."
  (Quran, 36:51)
- **Hadith**:
  The Prophet Muhammad (PBUH) "Whoever believes in Allah and the Last Day, let him speak good or remain silent."
  (Sahih al-Bukhari, 6018)

2. The Day of Judgment (Yawm al-Hisab)

- On the Last Day, every individual will stand before Allah and be judged for their actions. Those who lived righteous lives and obeyed Allah will be rewarded with Paradise (Jannah), while those who disbelieved or committed major sins without repentance will be punished in Hell (Jahannam).
- **Quranic reference**:
  "And fear the Day when you will be returned to Allah. Then every soul will be compensated for what it earned, and they will not be wronged." **(Quran, 2:281)**
- **Hadith**:
  "The deeds of the children of Adam are shown to Allah every week on Monday and Thursday, and I ask for forgiveness for them, except for two people who have enmity between them. It will be 'Delay these two until they reconcile.'"
  (Sahih Muslim, 2565)

3. The Scale (Mizan)

- On the Last Day, all deeds will be weighed on a scale (Mizan). The good deeds will be placed on one side, and
  the bad deeds on the other. The person's final destination (Paradise or Hell) will depend on the weight of their good deeds versus their bad ones.
- **Quranic reference**:
  "And the weighing on that Day will be the truth. So those whose scales are heavy – it is they who are the successful." **(Quran, 7:8)**
- **Hadith**:
  "Nothing will be heavier on the scale of the believer on the Day of Judgment than good character."

(Sunan at-Tirmidhi, 2003)

4. The Sirat (Bridge)

- After judgment, all people will have to cross a bridge (the Sirat) over Hell. It is described as being thinner than a hair and sharper than a sword. Those who have been deemed righteous will be able to cross it quickly, while the wrongdoers will stumble and fall into Hell.
- **Hadith**:
  "The Sirat will be placed over Hell and I will be the first to cross it. None of you will be able to pass it except by the mercy of Allah."
  (Sahih Muslim, 186)

5. Intercession (Shafa'ah)

- Muslims believe that intercession will be granted on the Last Day by the Prophet Muhammad (PBUH), the righteous angels, and other pious individuals. Intercession will help some people receive mercy and forgiveness from Allah, even if their deeds did not meet the required standard for Paradise.
- **Hadith**:
  "My intercession is for those of my followers who have committed major sins."
  (Sunan an-Nasa'i, 2643)
- **Quranic reference**:
  "On that Day no intercession will avail except that of one whom the Most Merciful has permitted and whose word He has approved."
  (Quran, 19:87)

6. The Two Eternal Abodes: Paradise (Jannah) and Hell (Jahannam)

- **Paradise (Jannah)** is the ultimate reward for those who believed in Allah and lived righteous lives. It is described in the Quran as a place of eternal bliss, where there is no pain, sorrow, or suffering.
- **Hell (Jahannam)** is the ultimate punishment for those who rejected faith or committed severe wrongdoings. It is described as a place of severe torment and suffering.
- **Quranic references**:
  - **Jannah**: *"Indeed, those who have believed and done righteous deeds – they will have the Gardens of Paradise as a lodging."*
    (Quran, 18:107)
  - **Jahannam**: *"Indeed, Hell is a place of ambush. For the transgressors, a place of return."*
    (Quran, 78:21-22)

7. Signs of the Last Day

- There are numerous signs that will precede the Last Day. These signs include both **minor signs**, such as the spread of immorality and injustice, and **major signs**, including the appearance of the **Dajjal** (Antichrist), the return of **Isa (Jesus)**, the coming of **the Mahdi** (a leader who will guide the Muslims before the Day of Judgment), and the sun rising from the west.
- **Hadith**:
  "The Hour will not be established until you see ten signs: the smoke, the Dajjal, the beast, the sun rising from the west, the descent of Isa (A.S.), Gog and Magog, and three earthquakes: one in the east, one in the west, and one in Arabia."

(Sahih Muslim, 2911)

BELIEF IN QADAR

The **belief in Qadar** (Divine Decree) is one of the six **Pillars of Iman** (faith) in Islam. Qadar refers to the belief that Allah has predetermined everything that happens in the universe, including all the events of a person's life. This belief is based on the understanding that Allah, in His infinite knowledge and wisdom, has preordained all matters, while human beings still retain free will and are accountable for their actions. The belief in Qadar helps Muslims understand the relationship between divine predestination and human agency.

Key Aspects of Belief in Qadar

1. **Allah's Knowledge is Absolute**:
   - Allah's knowledge encompasses everything — past, present, and future. Nothing occurs without His knowledge, and His knowledge is not limited by time or space. Allah knows everything that will happen in the future, including every detail of the universe and the choices people will make.
   - **Quranic Reference**:
     "Indeed, Allah is the Knower of the unseen of the heavens and the earth. Indeed, He is Knowing of that within the breasts."
     (Quran, 35:38)
2. **Allah Has Written Everything**:
   - According to Islamic belief, Allah has written everything that will happen in a Book known as **Al- Lawh al-Mahfuz** (The Preserved Tablet), which is with Him in the heavens. This includes every event that will occur in the universe, from the creation of the heavens and earth to the birth and death of every individual, and every choice a person will make.
   - **Quranic Reference**:

"No calamity strikes upon the earth or among yourselves except that it is in a Book before We bring it

into being. Indeed that, for Allah, is easy."

(Quran, 57:22)

3. **Everything Happens by Allah's Will**:
   - Allah has complete control over everything in the universe. Nothing happens without His will and permission. While humans have free will to choose their actions, they are not outside of Allah's ultimate control. He has ordained everything in the universe to unfold according to His wisdom and purpose.
   - **Quranic Reference**:
     "And you do not wish except that Allah wills. Indeed, Allah is ever Knowing and Wise."
     (Quran, 76:30)
4. **The Balance Between Free Will and Predestination**:
   - Muslims believe that Allah's predestination does not negate human free will. Humans are responsible for their choices and actions, and they will be judged based on them on the Day of Judgment. While Allah has decreed the outcomes of events, humans are still given the ability to make decisions and are accountable for them.
   - **Hadith**:
     The Prophet Muhammad (PBUH) "If something happens to you, do not say: 'If I had done such-and- such, such-and-such would have happened,' but say: 'Allah has decreed, and what He wills, He does.'" **(Sahih Muslim, 2664)**
5. **Belief in Qadar Includes Belief in Four Aspects**: The belief in Qadar includes faith in four main components:
   - **Allah's Knowledge**: Allah knows everything, and nothing happens without His knowledge.
   - **Allah's Writing**: Allah has written all that will happen in the

Preserved Tablet.

- **Allah's Will**: Everything that happens occurs by the will and permission of Allah.

- **Allah's Creation**: Allah is the Creator of everything, and all events and actions are created by Him.

6. **Acceptance and Trust in Allah's Decree**:
   - Part of the belief in Qadar is the acceptance of whatever happens, whether it is good or bad, knowing that Allah has ordained it for a reason. Muslims are encouraged to trust in Allah's wisdom and plan, even during difficult or challenging times, as everything is part of His divine will and purpose.
   - **Quranic Reference**:
     "Indeed, Allah is the best of planners."
     (Quran, 3:54)

Practical Implications of Belief in Qadar

1. **Patience in the Face of Adversity**:
   - Belief in Qadar teaches Muslims to be patient in times of hardship or distress. Since they believe that everything happens according to Allah's will, they understand that trials and tests are part of Allah's plan and that they will be rewarded for their patience.
   - **Quranic Reference**:
     "And We will surely test you with something of fear and hunger and a loss of wealth and lives and fruits, but give good tidings to the patient."
     (Quran, 2:155)
2. **Gratitude for Blessings**:
   - Muslims believe that all blessings are part of Allah's decree, and thus, they should be thankful for whatever they have. Whether a person is in wealth or poverty, health or illness, they should acknowledge that it is part of Allah's divine plan.

- **Hadith**:

  The Prophet (PBUH) "How amazing is the affair of the believer! His affairs are all good. If something good happens, he is grateful, and that is better for him. If something bad happens, he is patient, and that is

better for him."

(Sahih Muslim, 2999)

3. **Responsibility for Actions**:
   - While everything is decreed by Allah, human beings are still responsible for their choices and actions. Belief in Qadar encourages individuals to work hard and strive for good in this life, while trusting that the outcomes are in the hands of Allah.
   - **Quranic Reference**:
     "Say, 'Indeed, my prayer, my rites of sacrifice, my living and my dying are for Allah, Lord of the worlds.'" **(Quran, 6:162)**

Belief in Qadar in Relation to Free Will

A common question arises about how free will relates to predestination. While Allah has decreed everything that will happen, Islam teaches that human beings still have the capacity to make choices. These choices are made freely, and people are responsible for them. The fact that Allah knows what people will choose and has ordained their choices in no way removes their free will. In other words, a person's actions are still their own, and they are accountable for them.

Hadith on Qadar and Divine Decree

- **Narrated by Aisha (RA):**
  The Prophet (PBUH) "Do not curse time, for Allah is time."
  (Sahih Muslim, 2246)

  This hadith emphasizes that time and all occurrences within it are under the control of Allah. Instead of complaining or feeling frustrated with the unfolding of events, Muslims are encouraged to have faith in Allah's plan and to trust in His wisdom.

DEVOTION ACTS:
SHARIA ISLAMIC LAW

Sharia (Islamic Law) is the legal and moral code that governs the lives of Muslims. It encompasses both the spiritual and social aspects of life, guiding everything from religious practices and personal conduct to interactions with others and the broader society. **Sharia** is derived from two main sources: the **Quran**, the holy book of Islam, and the **Hadith**, the sayings and actions of the Prophet Muhammad (PBUH).

The **devotional acts** or **ibadat** (acts of worship) under Sharia are the practices that directly relate to a Muslim's relationship with Allah and are central to Islamic life. These acts are considered both spiritual obligations and legal duties that
guide a person's relationship with their Creator, as well as with other human beings.

Key Devotional Acts in Sharia

1. Shahada (Declaration of Faith)

- The **Shahada** is the basic testimony of faith and is the first and most fundamental act of devotion in Islam. It states:
  "There is no god but Allah, and Muhammad is the messenger of Allah."
- **Significance**: This declaration signifies a person's acceptance of Islam and submission to Allah. It marks the entrance into the Muslim community.
- **Sharia Relation**: The Shahada is considered the foundation of faith (Iman), and all Islamic practices and actions are built upon this core belief.

2. Salat (Prayer)

- **Salat** is the ritual prayer offered by Muslims five times a day: at dawn (Fajr), noon (Dhuhr), mid-afternoon (Asr), sunset (Maghrib), and night (Isha).
- **Significance**: Salat is one of the Five Pillars of Islam and is the direct means of communication between a Muslim and Allah. It helps maintain mindfulness of Allah throughout the day.
- **Sharia Relation**: It is obligatory for every Muslim to perform these prayers unless they are excused due to illness, age, or other valid reasons. Salat is a key devotional act and a manifestation of obedience to Allah's command.
- **Quranic Reference**:
  "Indeed, I am Allah. There is no deity except Me, so worship Me and establish the prayer for My remembrance." **(Quran, 20:14)**

3. Zakat (Charity)

- **Zakat** is the compulsory almsgiving or charity, typically 2.5% of one's wealth annually, given to the poor and needy.
- **Significance**: Zakat purifies wealth and helps redistribute resources in society, fostering solidarity and reducing inequality.
- **Sharia Relation**: Zakat is an obligation for Muslims who possess wealth above a certain threshold (nisab). It is not merely voluntary charity but a legal obligation.
- **Quranic Reference**:
  "Take, O Muhammad, from their wealth a charity by which you purify them and cause them increase."
  (Quran, 9:103)

4. Sawm (Fasting during Ramadan)

- **Sawm** is fasting during the month of Ramadan, abstaining from food, drink, and other physical needs from dawn until sunset.
- **Significance**: Fasting develops self-control, empathy for the less fortunate, and draws the individual closer to Allah.
- **Sharia Relation**: Fasting is obligatory for Muslims during Ramadan unless they are excused due to illness, pregnancy, travel, or other valid reasons. It is both a devotional and legal obligation.
- **Quranic Reference**:
  "O you who have believed, decreed upon you is fasting as it was decreed upon those before you that you may become righteous." **(Quran, 2:183)**

5. Hajj (Pilgrimage to Mecca)

- **Hajj** is the pilgrimage to the holy city of Mecca, which every Muslim must undertake once in a lifetime, provided they have the physical and financial ability.
- **Significance**: Hajj symbolizes the unity of the Muslim Ummah (community) and serves as an act of worship that cleanses sins.
- **Sharia Relation**: Hajj is an obligatory act for Muslims who meet the criteria (i.e., physical, financial, etc.). It is considered a once-in-a-lifetime duty.
- **Quranic Reference**:
  "And [due] to Allah from the people is a pilgrimage to the House – for whoever is able to find thereto a way." **(Quran, 3:97)**

Additional Acts of Devotion in Sharia

6. Dua (Supplication)

- **Dua** is the act of making personal supplications to Allah, asking for guidance, forgiveness, or help in times of need.
- **Significance**: Dua is a form of worship that demonstrates humility and reliance on Allah's mercy.
- **Sharia Relation**: While not obligatory, it is highly encouraged in Sharia to make dua regularly as an expression of devotion and faith.
- **Quranic Reference**:
  "And your Lord says: 'Call upon Me; I will respond to you.'"
  (Quran, 40:60)

7. Reading and Reflecting on the Quran

- **Reading the Quran** regularly and reflecting on its meanings is an act of devotion and a means of gaining knowledge and closeness to Allah.
- **Significance**: The Quran is the literal word of Allah, and reciting and reflecting upon it brings spiritual rewards and guidance.
- **Sharia Relation**: Although not a formal "pillar," reciting the Quran is highly encouraged in Islamic law and is considered a fundamental aspect of worship.
- **Quranic Reference**:
  "This is the Book about which there is no doubt, a guidance for those conscious of Allah."
  (Quran, 2:2)

8. Dhikr (Remembrance of Allah)

- **Dhikr** involves the frequent recitation of praises and names of Allah,

either silently or aloud. Examples include saying *SubhanAllah* (Glory be to Allah), *Alhamdulillah* (Praise be to Allah), and *Allahu Akbar* (Allah is the Greatest).

- **Significance**: It helps to keep the heart and mind focused on Allah and strengthens the believer's connection to the divine.
- **Sharia Relation**: Dhikr is highly recommended in Sharia as an act of devotion and remembrance.
- **Quranic Reference**:
  "O you who have believed, remember Allah with much remembrance."
  (Quran, 33:41)

9. Tawbah (Repentance)

- **Tawbah** is the act of seeking forgiveness from Allah for one's sins. It involves sincere regret for wrongdoing and a commitment to avoid repeating the sin.
- **Significance**: Repentance is a way to cleanse oneself spiritually and renew the relationship with Allah.
- **Sharia Relation**: Repentance is not only encouraged but is a legal aspect of Sharia, as Allah promises to forgive those who sincerely repent.
- **Quranic Reference**:
  "And those who, when they commit an immorality or wrong themselves [by transgression], remember Allah and seek forgiveness for their sins – and who can forgive sins except Allah?"
  (Quran, 3:135)

10. Observing Islamic Ethics and Morality

- Acts of devotion in Islam also extend to moral and ethical behavior. This includes honesty, integrity, kindness, respect, and justice.
- **Significance**: Living according to Islamic ethics is considered a form of worship because it fulfills Allah's commands and

ensures the well-being of society.

- **Sharia Relation**: Ethical and moral conduct is a crucial aspect of Sharia and is integral to a Muslim's spiritual life.

- **Quranic Reference**:
  "Indeed, Allah commands you to act with justice, the doing of good, and liberality to kith and kin..."
  (Quran, 16:90) Key

Sources of Shariah

1. **The Quran**:
   - The Quran is the primary source of Shariah. It contains direct revelations from Allah (God) to the Prophet Muhammad (PBUH). The Quran provides guidance on all aspects of life, including theological beliefs, morality, personal behavior, and legal matters.
   - **Example**:
     "Indeed, this Qur'an guides to that which is most suitable..."
     (Quran, 17:9)
2. **Hadith**:
   - The Hadith refers to the recorded sayings, actions, and approvals of Prophet Muhammad (PBUH). Hadiths provide context, elaboration, and clarification of the Quranic teachings and offer additional rules and guidance on matters not explicitly addressed in the Quran.
   - **Example**:
     "Whoever shows you a way of righteousness, follow him."
     (Sahih Muslim, 217)
3. **Ijma (Consensus)**:
   - **Ijma** refers to the consensus of Islamic scholars on legal issues. When the Quran and Hadith do not provide clear guidance, scholars may reach a collective consensus on certain matters, which is accepted as part of Shariah.

4. **Qiyas (Analogy)**:
    - **Qiyas** is a method of reasoning by analogy. If a situation or issue arises that is not directly addressed in the Quran or Hadith, scholars apply principles found in similar cases to derive a legal ruling.

Key Areas of Shariah

Shariah covers both **devotional acts** (acts of worship) and **social aspects** (personal and family matters, criminal law, business transactions, etc.).

1. Acts of Worship (Ibadat)

- These are the acts of devotion and worship that establish a Muslim's relationship with Allah. They include:
    - **Shahada** (Faith): The declaration of belief in the oneness of Allah and the prophethood of Muhammad (PBUH).
    - **Salat** (Prayer): The five daily prayers.
    - **Zakat** (Charity): The giving of alms to the poor and needy.
    - **Sawm** (Fasting): Fasting during the month of Ramadan.
    - **Hajj** (Pilgrimage): The pilgrimage to Mecca, required once in a lifetime for those who are able.

2. Family Law

- Shariah provides guidance on marriage, divorce, inheritance, and child custody. Family law in Shariah is based on principles of fairness and justice, with specific rights and duties for each family member.

- **Marriage**: A contract between a man and a woman with mutual rights and responsibilities.

- **Divorce**: Clear guidelines are provided on divorce, including the waiting period (iddah), the treatment of women, and the fair division of property.
- **Inheritance**: Shariah outlines specific shares for family members in inheritance, ensuring justice for all heirs.

- **Quranic Reference**:
  "And they (women) have rights similar to those (of men) over them in kindness..."
  (Quran, 2:228)

3. Criminal Law

- Shariah includes punishments for crimes, known as **Hudud** (fixed punishments), which are prescribed for specific offenses such as theft, adultery, and apostasy. These punishments are seen as a means to deter wrongdoing and protect society.
  - **Theft**: The punishment for theft under Shariah law may include the amputation of a hand, though this is rarely carried out and requires strict evidence.
  - **Adultery**: The punishment for adultery includes flogging or stoning, but again, strict criteria must be met to implement this punishment.
- **Quranic Reference**:
  "As for the thief, the male and the female, amputate their hands in recompense for what they committed as a deterrent [punishment] from Allah."
  (Quran, 5:38)

4. Trade And Finance Law

- Shariah provides principles for fair trade, the prohibition of usury (Riba), and the regulation of business contracts. The goal is to ensure that transactions are conducted ethically and fairly, with a focus on honesty, transparency, and justice.

- **Prohibition of Riba (Usury)**: Charging or paying interest is forbidden in Shariah, as it is seen as exploitative. Instead, Islamic finance relies on profit- sharing and risk-sharing contracts.
- **Fair Business Practices**: Business transactions must be free of fraud, deception, and injustice. Contracts should be clear, and both parties should fulfill their obligations.

- **Quranic Reference**:
  "Those who devour usury will not stand except as stand those who have been driven to madness by [the touch of] Shaytan..."
  (Quran, 2:275)

5. Social and Ethical Conduct

- Shariah also provides a framework for personal ethics, social relations, and behavior, including:
  - **Honesty and Integrity**: Muslims are required to be truthful, trustworthy, and just in their dealings with others.
  - **Respect for Parents**: Shariah places great emphasis on honoring one's parents and maintaining family ties.
  - **Social Justice**: The principles of fairness, equality, and the protection of the rights of the vulnerable (e.g., the poor, orphans, and the oppressed) are central to Shariah.
- **Quranic Reference**:
  "And lower to them [parents] the wing of humility out of mercy and say, 'My Lord, have mercy upon them as they brought me up [when I was] small.'"
  (Quran, 17:24)

Interpretation and Application of Shariah

Shariah is not a single, monolithic code of law; it is interpreted and applied differently across various Islamic schools of thought (madhahib). There are four major Sunni schools of jurisprudence:

1. **Hanafi**: One of the oldest and most widely followed schools, particularly in South Asia, Turkey, and the Balkans.
2. **Maliki**: Predominantly followed in North and West Africa.
3. **Shafi'i**: Found in East Africa, Southeast Asia, and parts of the Arabian Peninsula.
4. **Hanbali**: The most conservative school, followed in parts of the Arabian Peninsula, particularly in Saudi Arabia.

In addition to these, the **Shia** school of thought has its own interpretations of Shariah, which differ in some areas from the Sunni schools.

Modern Context and Application

Shariah law has been the subject of debate in the modern world. In some countries, Shariah is fully implemented as the primary legal system (e.g., Saudi Arabia and Iran), while in others, it is applied in specific areas such as family law (e.g., in many Muslim-majority countries). The interpretation and application of Shariah can vary based on cultural, historical, and political contexts.

In many Western countries, Shariah is not a formal legal system but may influence personal and family matters for Muslims, such as marriage and divorce, particularly within their communities.

PROTECTION OF RELIGION

Shariah (Islamic Law) not only governs the personal and social conduct of Muslims, but it also provides mechanisms to protect the **fundamental rights and principles** that are crucial for the well-being of individuals and society, including the **protection of religion (din)**. In Shariah, the protection of religion is considered one of the essential objectives, or **Maqasid al- Shariah** (the higher objectives of Islamic law), aimed at safeguarding key aspects of human life.

The protection of religion ensures that individuals are free to practice their faith, express their beliefs, and engage in religious practices without hindrance or coercion. It also involves protecting religious institutions, maintaining the integrity of religious practices, and promoting religious harmony within society. Shariah establishes certain legal principles and actions to safeguard religion, recognizing its importance for both individual spiritual fulfillment and the well-being of society.

Key Aspects of Shariah's Protection of Religion

1. Freedom of Religious Belief and Practice

- One of the fundamental principles of Shariah is that individuals are free to choose and practice their religion. This is particularly significant in the context of the **Islamic state** where Muslims are encouraged to uphold religious freedom, and non-Muslims are allowed to practice their faith within an Islamic society.
- **Quranic Reference**:
  "Let there be no compulsion in religion, for the truth stands out clearly from falsehood."
  (Quran, 2:256)

- This verse highlights that faith is a matter of personal conviction, and no one should be forced into adopting a

particular belief. Therefore, Shariah upholds the right to religious freedom and encourages respect for the diverse beliefs of others.

2. Protection from Apostasy (Riddah)

- **Apostasy** (riddah) in Islam refers to the abandonment or renunciation of the Islamic faith. Shariah recognizes that the freedom to practice and maintain one's religion must be safeguarded, and apostasy is seen as a severe offense because it undermines the basic tenets of Islam.
- **Protection of Religion**: While apostasy is prohibited under Shariah, its legal consequences are subject to varying interpretations. In classical Islamic jurisprudence, apostasy may result in a severe punishment, often capital punishment, under specific conditions. However, contemporary interpretations and applications of this law vary widely, and many scholars emphasize that apostasy should be dealt with in a manner that ensures due process and a fair trial, with the ultimate goal of protecting the individual's right to faith.
- **Hadith**:
  "Whoever changes his religion, kill him."
  (Sahih Bukhari, 6922)
- The application of this hadith is debated, and some scholars argue that it relates to cases of high treason or rebellion against the state, particularly during the time of the Prophet Muhammad (PBUH).

3. Respect for Religious Symbols and Practices

- Shariah prohibits the disrespect or desecration of religious symbols, figures, or practices. This includes actions such as mocking religious rituals, insulting sacred texts, or ridiculing religious beliefs. The protection of religious symbols and practices is vital for maintaining

the sanctity

of religion and promoting peaceful coexistence in a diverse society.

- This is particularly important in multi-religious societies where Shariah encourages tolerance and respect for the religious beliefs of others. While Muslims must protect and respect their own religious practices, they are also required to maintain the dignity of other religious communities.
- **Quranic Reference**:
  "And do not insult those they invoke other than Allah, lest they insult Allah in transgression without knowledge..." **(Quran, 6:108)**
- This verse underscores the importance of mutual respect and discourages any behavior that would lead to the defamation or insult of others' religious symbols.

4. Promotion of Dawah (Invitation to Islam)

- Shariah encourages Muslims to invite others to Islam through peaceful means, using wisdom and good conduct. This process is known as **Dawah** (inviting others to Islam), and it is seen as a vital way to promote the protection of religion. Dawah must be conducted in a manner that respects the dignity and freedom of the individual, focusing on dialogue rather than coercion.
- **Quranic Reference**:
  "Invite to the way of your Lord with wisdom and good instruction, and argue with them in a way that is best..." **(Quran, 16:125)**
- Dawah is not about forcing others to accept Islam but about presenting the truth of Islam through peaceful persuasion and good character.

5. Protection of Religious Knowledge and Scholars

- Shariah places great importance on the preservation of **religious knowledge**. Scholars of Islam (ulama) play a vital role in interpreting the Quran and Hadith, teaching the faith, and guiding the community in matters of religious law and ethics.
- **Protection of Religious Education**: Shariah safeguards religious education and supports the establishment of institutions (such as mosques, madrasahs, and schools) that preserve Islamic knowledge, ensuring the continuity of religious teachings.
- **Hadith**:
  "The scholars are the heirs of the Prophets."
  (Sunan Abu Dawood, 3641)
- This hadith emphasizes the significant responsibility of religious scholars to preserve and transmit Islamic teachings.

6. Protection of Religious Unity

- Shariah encourages **unity** among Muslims and strives to prevent divisions that could harm the integrity of the Muslim community (Ummah). This includes prohibiting sectarianism, infighting, and any action that threatens the unity of Muslims.
- The **Prophet Muhammad (PBUH)** warned against divisions within the Muslim community, as it could weaken the community's ability to uphold Islam. Shariah emphasizes the importance of maintaining **mutual respect, cooperation, and understanding** among Muslims, regardless of differences in school of thought or local customs.
- **Hadith**:
  "The believers are like one body. When one part of the body suffers, the whole body suffers."

(Sahih Muslim, 2586)

- This hadith emphasizes the importance of solidarity and unity in the Muslim Ummah.

7. Protection from Blasphemy and Religious Offenses

- **Blasphemy** (the act of insulting or showing disrespect towards Allah, the Prophet Muhammad, or sacred religious symbols) is prohibited under Shariah, as it directly harms the sanctity of religion. Laws regarding blasphemy are designed to preserve the dignity of religion and maintain respect for religious figures.
- While the application of blasphemy laws is contentious in modern contexts, Shariah traditionally mandates penalties for blasphemy to protect the sacredness of Islam and deter actions that may lead to religious conflict or societal unrest.
- **Quranic Reference**:
  "Indeed, those who abuse Allah and His Messenger – Allah has cursed them in this world and the Hereafter and prepared for them a humiliating punishment."
  (Quran, 33:57)

8. Safeguarding Religious Worship and Rituals

- Shariah protects the ability of Muslims to perform their acts of worship, such as daily prayers (Salat), fasting (Sawm), and pilgrimage (Hajj), without hindrance. Islamic law provides mechanisms to ensure that Muslims can worship freely and without fear of persecution.
- **Protection of Mosques**: The security and sanctity of mosques and places of worship are safeguarded by Shariah, ensuring that these spaces remain safe for religious practices.
- **Quranic Reference**:

"And that the mosques are for Allah, so do not invoke with Allah anyone."
(Quran, 72:18)

PROTECTION OF INTELECT

Shariah (Islamic Law) not only provides guidance on matters of worship and personal conduct, but also upholds the **protection of intellect** (or **'Aql** in Arabic), which is considered one of the essential **Maqasid al-Shariah** (higher objectives of Islamic law). The protection of intellect is integral to safeguarding an individual's ability to reason, think critically, and make sound decisions. Shariah protects intellect in several ways, including through the prohibition of harmful substances, encouragement of education, and fostering environments conducive to intellectual growth.

In Islam, the intellect is considered a divine gift from Allah (God) and plays a pivotal role in guiding individuals to recognize the truth, perform righteous deeds, and engage in productive and meaningful life activities. The preservation of intellect is linked to a healthy, moral, and flourishing society. Here's an exploration of how Shariah protects and promotes the intellect:

1. Prohibition of Intoxicants (Khamr)

- **Intoxicants** (khamr), which impair an individual's reasoning and judgment, are strictly prohibited in Islam because they undermine the intellect. Alcohol, drugs, and other substances that alter the mind or impair the ability to reason are considered **haram** (forbidden).
- **Quranic Reference**:
  "O you who have believed, indeed, intoxicants, gambling, [sacrificing on] stone alters [to other than Allah], and divining arrows are but defilement from the work of Satan, so avoid it that you may be successful."
  (Quran, 5:90)
- This verse makes it clear that intoxicants are harmful not only

spiritually but also in terms of the well-being of one's mind and intellect. The purpose is to protect people from

impairing their judgment and losing the ability to think clearly.

- **Hadith**:
  "Every intoxicant is Khamr, and every Khamr is haram."
  (Sahih Muslim, 2003)
- This hadith reinforces the prohibition of substances that damage the intellect and harm a person's ability to reason.

2. Encouragement of Knowledge and Learning

- **Seeking knowledge** is highly emphasized in Islam as a means to protect and develop the intellect. The Quran and Hadith urge Muslims to acquire knowledge, both religious and secular, as a means of guiding their actions, understanding the world, and enhancing their ability to make sound decisions.
- **Quranic Reference**:
  "Read in the name of your Lord who created, created man from a clot [of blood]. Read, and your Lord is the most Generous. Who taught by the pen. Taught man that which he knew not."
  (Quran, 96:1-5)
- The Quran opens with a call to read and acquire knowledge, emphasizing the importance of intellectual development in Islam. Knowledge empowers individuals, strengthens their intellect, and equips them to make informed decisions based on both faith and reason.
- **Hadith**:
  "Seeking knowledge is an obligation upon every Muslim."
  (Sunan Ibn Majah, 224)
- This hadith further underscores the importance of acquiring knowledge and cultivating the intellect, which is seen as a way to strengthen one's faith and improve society.

3. Protection from Harmful Ideas and Falsehood

- Shariah protects the intellect by safeguarding individuals from harmful ideas, superstitions, or falsehoods that can mislead or confuse them. Islam encourages critical thinking and reasoning based on truth, and it warns against beliefs that undermine the intellectual and spiritual well-being of individuals.
- The **Quran** challenges individuals to reflect, reason, and think critically about the natural world, their existence, and the signs of Allah's creation, urging them to reject ignorance and superstition.
- **Quranic Reference**:
  "Say, 'Are those who know equal to those who do not know?'"
  (Quran, 39:9)
- This verse emphasizes the value of knowledge and intellect, contrasting it with ignorance. It highlights the importance of informed understanding, whether in religious matters or worldly affairs.

4. Prohibition of Suicide and Self-Harm

- Shariah prohibits actions that harm the intellect or the body, including **suicide** and **self-harm**, because they destroy the individual's ability to live a productive, meaningful life. The preservation of life is central to Shariah, and intentionally shortening one's life is considered a violation of the sacred trust given by Allah.
- **Quranic Reference**:
  "Do not kill yourselves. Indeed, Allah is ever Merciful to you."
  (Quran, 4:29)
- This prohibition serves to protect the mental and emotional well-

being of individuals, recognizing that a person's intellect must remain intact to fulfill their purpose and duties in life.

5. Balanced Approach to Physical and Mental Health

- Shariah encourages maintaining both physical and mental health to preserve the intellect. This includes engaging in practices that support mental well-being, such as avoiding stress, anxiety, and depression, and seeking therapy or treatment when necessary.
- **Hadith**:
  "There is no disease that Allah has created, except that He also has created its remedy."
  (Sahih Bukhari, 5678)
- This hadith encourages individuals to seek healing and treatment for mental health issues, whether through prayer, counseling, or medical care. The goal is to ensure that the intellect is functioning at its best, allowing the individual to make sound decisions.

6. Prohibition of Over-Indulgence and Harmful Lifestyles

- Shariah emphasizes the need for moderation in all aspects of life, including diet, work, and recreation. Overindulgence, whether in food, sleep, or excessive distraction, can negatively impact one's mental clarity and ability to think clearly. Islam encourages maintaining a balanced lifestyle that promotes the proper function of the mind and body.
- **Quranic Reference**:
  "Indeed, the most beloved of actions to Allah are those which are done consistently, even if they are small." **(Sahih Bukhari, 6464)**
- This encourages a lifestyle of balance, avoiding extremes that might impair one's intellectual faculties.

7. Avoidance of Harmful Entertainment and Content

- Shariah advises against engaging in activities or consuming media that corrupt the intellect or morals. This includes avoiding entertainment that promotes immorality, false ideologies, or distracts from one's spiritual and intellectual development.
- Shariah also guides Muslims to prioritize activities that benefit the intellect and spirit, such as reading beneficial books, engaging in positive discussions, and contributing to the welfare of society.

8. Ethical and Moral Reasoning

- Shariah teaches that the intellect should be guided by ethical and moral principles. Rationality and intellectual capacity must be aligned with the guidance of Islamic ethics. Thus, actions based on injustice, deception, and cruelty are seen as harmful to the intellect because they violate moral reasoning.
- **Quranic Reference**:
  "And do not mix the truth with falsehood or conceal the truth while you know [it]."
  (Quran, 2:42)
- This verse encourages intellectual honesty and integrity, urging people to use their reasoning abilities to distinguish between right and wrong and to act accordingly.

PROTECTION OF LIFE

The **protection of life** is one of the most fundamental objectives of **Shariah (Islamic Law)**, which emphasizes the sanctity and value of human life. Islam regards life as a gift from Allah (God), and it is the responsibility of individuals and society to preserve and protect it. The preservation of life is central to **Maqasid al-Shariah** (the higher objectives of Islamic law), which aim to ensure the welfare of individuals and society. These objectives safeguard life in both physical and spiritual dimensions, promoting justice, security, and well-being.

Key Principles of Shariah's Protection of Life

1. The Sanctity of Human Life

- Islam teaches that human life is sacred, and taking an innocent life is a grave sin. The **Quran** and **Hadith** clearly emphasize the sanctity of life, making it a central tenet of Islamic ethics and law.
- **Quranic Reference**:
  "And do not kill the soul which Allah has forbidden, except by right..."
  (Quran, 17:33)
- This verse indicates that the taking of an innocent life is prohibited in Islam, and any exception must be based on established legal principles, such as in cases of self- defense, legal retribution, or punishment for serious crimes, all of which must be strictly regulated.

2. The Right to Life

- Islam affirms that **every individual** has the inherent right to life. This right is not to be violated except under specific and just circumstances.

Shariah provides clear legal guidelines for protecting life, including the rights of the individual to be free from harm or unjust violence.

- **Hadith**:
  "Whoever kills a person who has a treaty with the Muslims, will not smell the fragrance of Paradise."
  (Sahih Bukhari, 3166)
- This hadith highlights the serious consequences of unlawfully taking someone's life, emphasizing the gravity of such an act in Islamic law.

3. Prohibition of Murder and Aggression

- **Murder** is unequivocally forbidden in Islam. The Quran and Hadith prohibit unjustly killing another person, and Shariah prescribes strict penalties for those who engage in murder. Islam calls for justice in cases of homicide, ensuring that the right to life is upheld for all individuals.
- **Quranic Reference**:
  "And whoever kills a believer intentionally, his recompense is Hell, wherein he will abide eternally, and Allah has become angry with him and has cursed him and prepared for him a great punishment."
  (Quran, 4:93)
- The severe punishment mentioned in this verse reflects the grave nature of murder in Islam. It underscores the importance of protecting life and upholding justice.

4. The Principle of Justice (Qisas)

- **Qisas**, or legal retribution, is the Islamic principle of justice that allows for the preservation of life by holding individuals accountable for acts of violence. In cases of murder or bodily harm, the family of the victim has the right to seek retribution, or alternatively, they can choose forgiveness or accept monetary compensation (**diya**).

- **Quranic Reference**:
  "O you who have believed, prescribed for you is legal retribution in the case of murder..."
  (Quran, 2:178)

- This principle ensures that justice is served in cases of unlawful killing or injury, while also allowing for the possibility of forgiveness, which reflects the balance of justice and mercy in Islam.

5. Protection of Life in War (Jihad)

- In situations of war, Islam sets strict rules to protect innocent lives and prevent unnecessary harm. Shariah prohibits the killing of non-combatants, women, children, and the elderly, and it emphasizes that the use of force must be proportionate to the threat.
- **Hadith**:
  "Do not kill a child, nor a woman, nor an old man, nor a monk in a monastery."
  (Sunan Abu Dawood, 2614)
- This hadith outlines the guidelines for warfare in Islam, ensuring that the protection of life is a primary concern, even in the context of conflict.

6. Prohibition of Suicide

- Islam strongly forbids **suicide** and any action that intentionally harms one's own life. Suicide is seen as a violation of the trust Allah has placed in individuals regarding the preservation of their life.
- **Quranic Reference**:
  "And do not kill yourselves. Indeed, Allah is ever Merciful to you."
  (Quran, 4:29)
- This verse demonstrates the Islamic teaching that life is a sacred gift, and taking one's own life is an act of disobedience and harm that

Allah forbids.

7. The Protection of Life Through Medical and Health Care

- Shariah encourages the pursuit of **healthcare** and the use of medical knowledge to preserve and protect life. Islam considers medicine and healing as a noble profession, and preserving health is seen as an essential part of upholding life.
- **Hadith**:
  "Make use of medical treatment, for Allah has not made a disease without appointing a remedy for it, except for one disease, namely old age."
  (Sahih Bukhari, 5681)
- This hadith highlights the Islamic view that seeking treatment and caring for one's health is encouraged, and medicine is a means to protect life and prevent harm.

8. Preserving Life During Pregnancy

- Shariah emphasizes the importance of **protecting the life of the unborn child**. Abortion is prohibited except in specific circumstances, such as when the life of the mother is at risk. Even in cases of rape or incest, the matter is addressed with great sensitivity, and there are differences of opinion among scholars regarding its permissibility.
- **Quranic Reference**:
  "And do not kill your children for fear of poverty. We provide for them and for you. Surely killing them is a heinous sin."
  (Quran, 17:31)
- The verse underscores the value of every life, including that of an unborn child, and prohibits the killing of children due to fear of poverty or hardship.

9. The Importance of Justice and Security

- Shariah places great emphasis on **justice** and **security** as essential elements for the protection of life. A just society, where the rights of individuals are respected and upheld, is one where life is protected and safeguarded. Islam calls for establishing security through just governance and legal systems that protect individuals from harm, oppression, and violence.
- **Quranic Reference**:
  "O you who have believed, be persistently standing firm in justice, witnesses for Allah, even if it be against yourselves or parents and relatives..."
  (Quran, 4:135)
- This verse highlights the importance of standing firm for justice, even in difficult circumstances, to ensure the protection of life and dignity.

10. Support for the Vulnerable and Protection from Harm

- Shariah also focuses on protecting the lives of the **vulnerable**, including the poor, orphans, and people in situations of extreme hardship or oppression. Islam commands the community to protect those who cannot protect themselves.
- **Quranic Reference**:
  "And do not approach the orphan's property, except in a way that is best until he reaches maturity..."
  (Quran, 6:152)
- This emphasizes the duty to protect vulnerable individuals from harm, ensuring that their lives are not exploited or threatened.safeguarding human life. Through its legal, ethical, and moral framework, Shariah

seeks to uphold the value of life in all its forms, ensuring that individuals can live with dignity, safety, and peace.

PROTECTION OF PROPERTY

Shariah (Islamic Law) places significant emphasis on the **protection of property** as part of the broader framework of safeguarding individual and collective rights within society. Property in Islam is seen as a trust from Allah, and individuals are responsible for managing, acquiring, and using it in ways that comply with Islamic principles. The protection of property includes not only tangible goods but also the right to one's wealth, income, and assets.

The **protection of property** is one of the key goals of **Maqasid al-Shariah** (the higher objectives of Islamic law), which aim to ensure the well-being of individuals and society. Shariah outlines clear guidelines and legal principles to protect people's property from theft, damage, unjust appropriation, and exploitation.

Key Principles of Shariah's Protection of Property

1. The Sanctity of Property

- **Shariah** teaches that property is a right granted by Allah, and it is to be protected and respected. The unlawful taking or damage of another person's property is considered a grave violation.
- **Quranic Reference**:
  "O you who have believed, do not consume one another's wealth unjustly or send it [in bribery] to the rulers in order that [they might aid] you [to] consume a portion of the wealth of the people in sin, while you know [it is unlawful]." **(Quran, 2:188)**
- This verse prohibits unjust consumption of others' property and sets the foundation for the idea that property rights must be respected in Islam.

2. Prohibition of Theft

- Islam strictly prohibits **theft**. The act of stealing is considered a violation of another person's right to property and is punishable under Shariah. The punishment for theft varies depending on the circumstances but is outlined in Islamic law as part of the **Hudud** (fixed punishments).
- **Quranic Reference**:
  "As for the thief, the male and the female, amputate their hands in recompense for what they committed as a deterrent [punishment] from Allah. And Allah is Exalted in Might and Wise."
  (Quran, 5:38)
- This verse sets a clear standard for the punishment of theft, emphasizing the importance of protecting property and deterring unlawful acts. However, the implementation of such punishments requires strict legal criteria and evidence, ensuring justice and fairness.

3. Prohibition of Fraud and Deception

- Shariah prohibits **fraud** and **deception** in financial transactions. Any attempt to cheat or deceive someone in the exchange of goods, services, or property is considered a violation of their rights.
- **Hadith**:
  "Whoever deceives us is not one of us."
  (Sahih Muslim, 102)
- This hadith highlights the importance of honesty and transparency in all dealings. Fraudulent behavior, whether in business or personal transactions, undermines trust and threatens the security of property rights.

4. The Right to Inheritance

- Islam ensures the protection of property by establishing clear laws of **inheritance**. The Quran outlines a detailed system for the distribution of wealth after death, ensuring that the property of deceased individuals is fairly and justly distributed according to the wishes of Allah, preventing disputes and injustices within families.
- **Quranic Reference**:
  "For men is a share of what the parents and close relatives leave, and for women is a share of what the parents and close relatives leave, be it little or much – an obligatory share."
  (Quran, 4:7)
- Islamic inheritance laws are designed to protect the property of heirs and ensure that wealth is distributed justly among family members, reducing the risk of disputes or exploitation.

5. Protection from Unjust Expropriation

- Islam prohibits the **unjust expropriation** or taking of another person's property, whether through oppression, coercion, or illegal means. No one has the right to seize another's property without due process or justification.
- **Quranic Reference**:
  "Do not consume each other's wealth unjustly or send it [in bribery] to the rulers in order that [they might aid] you [to] consume a portion of the wealth of the people in sin, while you know [it is unlawful]."
  (Quran, 2:188)
- The verse underscores the prohibition of using illegal means to acquire property, such as bribery or other forms of exploitation.

6. The Right to Fair Trade and Commerce

- Shariah emphasizes the importance of **fair trade** and commerce, where transactions should be based on mutual consent, transparency, and honesty. Profit should be earned through lawful means, and all commercial dealings should avoid exploitation.
- **Quranic Reference**:
  "O you who have believed, do not consume your wealth among yourselves in vanity or deceit, or bribe the rulers to unjustly take other people's property."
  (Quran, 2:188)
- This verse encourages fairness in trade and prohibits any form of deceit, ensuring that property rights are respected in business practices.

7. The Importance of Contracts and Agreements

- In Islam, **contracts** and **agreements** are legally binding and must be honored. Shariah emphasizes the need to fulfill agreements in matters of property and financial dealings. A contract is a way to protect both parties' rights to their respective property.
- **Quranic Reference**:
  "O you who have believed, fulfill [all] contracts."
  (Quran, 5:1)
- Islam stresses that entering into a contract is a serious matter, and both parties are obligated to respect the terms of the agreement, which ensures the protection of property.

8. Zakat (Charity) and Redistribution of Wealth

- One of the central mechanisms for protecting property within Islam is the institution of **Zakat**, a mandatory form of charity that requires

Muslims to give a portion of their wealth to those in need. This practice ensures that wealth

is redistributed in society, reducing inequality and protecting the property rights of the poor and vulnerable.

- **Quranic Reference**:
  "And establish prayer and give zakah and obey the Messenger – that you may receive mercy."
  (Quran, 24:56)
- Zakat helps to ensure that wealth does not accumulate in the hands of a few individuals and supports the welfare of the entire community.

9. Protection of Property Through the Law of Hadd (Fixed Punishments)

- In cases of serious violations such as theft, **Hadd** punishments (fixed punishments) are intended to serve as a deterrent and uphold the sanctity of property rights. The application of these punishments, however, is subject to strict legal requirements and evidence, ensuring justice is served without overreach or oppression.
- **Quranic Reference**:
  "As for the thief, the male and the female, amputate their hands in recompense for what they committed as a deterrent [punishment] from Allah. And Allah is Exalted in Might and Wise."
  (Quran, 5:38)
- This punishment applies only under specific conditions where the evidence is clear and other options, such as restitution or forgiveness, are not applicable.

10. Restitution and Compensation

- In cases where property is wrongfully taken, **restitution** or **compensation** is required. If someone damages or steals another person's property, they

must compensate for the loss, either by returning the property or paying a fair value for it.

- **Hadith**:
  "If anyone wrongfully takes the property of another person, he will meet Allah on the Day of Judgment to account for it."
  (Sahih Bukhari, 2449)
- This hadith emphasizes that those who take others' property unjustly are accountable for their actions in the Hereafter, and justice must be served in the form of restitution.

PROTECTION OF DIGNITY

Shariah (Islamic Law) places great emphasis on the **protection of dignity** as an essential aspect of human rights. The concept of **dignity** in Islam is deeply intertwined with the respect and honor of individuals, both in their private and public lives.
Islam teaches that every human being, regardless of their social, economic, or cultural background, has inherent dignity granted by Allah (God). The protection of dignity is part of the broader objectives of **Maqasid al-Shariah** (the higher goals of Islamic law), which aim to ensure the well-being of individuals and the preservation of justice, honor, and moral integrity in society.

Key Principles of Shariah's Protection of Dignity

1. Respect for Human Honor and Dignity

- Islam regards **human dignity** as a fundamental right. Every individual is entitled to be treated with respect, honor, and fairness. This applies to all people, irrespective of their social status, race, ethnicity, gender, or religion.
- **Quranic Reference**:
  "And We have certainly honored the children of Adam..."

(Quran, 17:70)

- This verse affirms that Allah has bestowed dignity upon all human beings, and it is the responsibility of others to preserve that dignity by treating them respectfully.

2. Prohibition of Backbiting and Slander

- **Backbiting** (gheebah) and **slander** (buhtan) are serious offenses in Islam, as they damage a person's honor and dignity. Speaking ill of someone behind their back, spreading false rumors, or falsely accusing someone is considered a grave sin.
- **Quranic Reference**:
  "And do not backbite each other. Would one of you like to eat the flesh of his brother when he is dead? You would detest it."
  (Quran, 49:12)
- The Quran likens backbiting to consuming the flesh of a dead brother, highlighting the severity of this act and its damaging effect on a person's dignity and honor.
- **Hadith**:
  "Do not speak ill of a believer or slander him, for Allah will not speak to you on the Day of Judgment."
  (Sahih Muslim)
- This hadith underscores the importance of preserving the dignity of others by refraining from slander and backbiting.

3. Prohibition of False Accusations (Qadhf)

- **False accusations** of immoral behavior, especially adultery (zina), are strictly prohibited in Islam. A person who falsely accuses another of such a serious crime without evidence is severely punished under Shariah.

- **Quranic Reference**:

  "And those who accuse chaste women and do not produce four witnesses – flog them with eighty stripes and do not

accept their testimony ever after."

(Quran, 24:4)

- This verse shows how seriously Islam takes the preservation of a person's reputation and dignity, especially regarding accusations of immorality. False accusations are considered a form of injustice and dishonor.

4. Respecting Privacy and Avoiding Intrusion

- Islam places great importance on an individual's **right to privacy**. Spying, eavesdropping, or intruding into someone's personal affairs without permission is forbidden in Islam, as it violates a person's dignity.
- **Quranic Reference**:
  "O you who have believed, do not enter houses other than your own until you have asked permission and greeted their inhabitants."
  (Quran, 24:27)
- This verse illustrates the principle that one must respect the boundaries of others' privacy, which is a key aspect of protecting their dignity.

5. Prohibition of Humiliation and Ridicule

- **Humiliation** or **ridicule** of others is strictly prohibited in Islam. People are encouraged to treat one another with kindness, respect, and compassion, and to avoid mockery, belittling, or causing embarrassment.
- **Quranic Reference**:
  "O you who have believed, let not a people ridicule [another] people; perhaps they may be better than them..." **(Quran, 49:11)**

- This verse encourages Muslims to avoid ridiculing or mocking others, as it undermines their dignity and goes against the values of respect and equality.

- **Hadith**:
  "None of you will have faith until he loves for his brother what he loves for himself."
  (Sahih Bukhari, 13)
- This hadith promotes the idea of mutual respect and consideration for others, emphasizing the importance of maintaining the dignity of others by treating them the way one would want to be treated.

6. The Right to Fairness and Justice

- **Justice** is a fundamental principle in Islam, and it is linked to the protection of a person's dignity. Everyone is entitled to fair treatment in all matters, whether it pertains to legal rights, social interactions, or personal conflicts.
- **Quranic Reference**:
  "O you who have believed, be persistently standing firm in justice, witnesses for Allah, even if it be against yourselves or parents and relatives..."
  (Quran, 4:135)
- This verse calls for impartiality and justice, ensuring that no one's dignity is compromised through unfair treatment.

7. Protection of Women's Dignity

- Islam emphasizes the protection of women's dignity, honor, and status. Women are entitled to respect, protection from harm, and the preservation of their reputation. Any violation of a woman's dignity, such as through slander, mistreatment, or exploitation, is strictly prohibited.
- **Quranic Reference**:

"And live with them in kindness."

(Quran, 4:19)

- This verse speaks about the treatment of women in marriage, urging men to treat their wives with kindness, respect, and dignity. It reflects the broader Islamic ethos

of safeguarding women's honor and dignity in all aspects of life.

8. The Right to Honor in Public and Private

- Islam requires the protection of dignity both in **public** and **private life**. This includes the right to live with honor and the right to be treated with respect in social and professional settings.
- **Quranic Reference**:
  "And do not let the hatred of a people prevent you from being just. Be just; that is nearer to righteousness." **(Quran, 5:8)**
- This verse encourages fairness and justice even when dealing with adversaries or those one may dislike, as protecting the dignity of others is integral to maintaining justice in society.

9. Preserving the Dignity of the Poor and Vulnerable

- Islam emphasizes the protection of the **dignity of the poor** and **vulnerable**, such as orphans, the elderly, and those in need. Acts of charity and kindness are ways to uplift the dignity of the less fortunate.
- **Quranic Reference**:
  "Give the orphan his property, and do not exchange the bad for the good, and do not consume his wealth into your own."
  (Quran, 4:2)
- This verse highlights the responsibility of Muslims to protect the dignity of vulnerable individuals, ensuring they are not exploited or deprived of their rights.

10. Protection from Defamation and False Reporting

- **Defamation**, including spreading false or harmful statements about others, is prohibited in Islam, as it tarnishes a person's reputation and dignity.
- **Hadith**:
  "Do not harm your brother in any way, for harming him is a violation of his honor."
  (Sahih Muslim, 2564)
- This hadith warns against actions or words that could cause harm to someone's reputation or dignity, reinforcing the importance of maintaining others' honor.

DEVOTIONAL ACTS: TAWBAH

Tawbah (repentance) is a fundamental concept in Islam, representing a believer's sincere return to Allah after committing a sin or wrongdoing. It is one of the **devotional acts** (ibadat) in Islam and an essential part of maintaining a close relationship with Allah. Tawbah reflects the core Islamic principles of humility, forgiveness, and spiritual renewal. Through repentance, a person seeks Allah's mercy and strives to purify their heart and actions, turning away from sin and returning to the path of righteousness.

Key Aspects of Tawbah in Islam

1. The Meaning of Tawbah

- **Tawbah** means to turn back or return. In the Islamic context, it refers to returning to Allah in sincerity after realizing one's mistake or sin, seeking His forgiveness, and striving to avoid the sin in the future.
- The concept of Tawbah implies not just seeking forgiveness, but also a commitment to **change one's behavior**, leaving behind sin, and seeking to lead a life in accordance with Allah's guidance.

2. The Importance of Tawbah

- Tawbah is crucial because all humans make mistakes, and repentance is the means through which a person seeks Allah's mercy and cleansing from sin.
- **Quranic Reference**:
  "And turn to Allah in repentance, all of you, O believers, that you might succeed."
  (Quran, 24:31)

- This verse underscores the importance of repentance for believers, emphasizing that it is a means of attaining success both in this life and the Hereafter.

- **Hadith**:
  "All the children of Adam are sinners, and the best of sinners are those who repent."
  (Sunan Ibn Majah, 4251)
- This hadith highlights that sin is a part of human nature, but repentance is what distinguishes a believer, as they constantly strive to return to Allah and seek His forgiveness.

3. Conditions for Tawbah to Be Accepted

Tawbah is not simply about uttering words of apology; it involves a **genuine commitment** to change. There are key conditions for Tawbah to be accepted by Allah:

- **Sincerity (Ikhlas)**: The repentance must be sincere, with the individual turning to Allah with a genuine intention to stop the sinful behavior.
- **Regret (Nadam)**: The person must feel true remorse and regret for having committed the sin. This regret is a sign of the individual's recognition of their mistake and their desire to make amends.
- **Ceasing the Sin (Iquf al-Maasi)**: The individual must immediately stop the sinful behavior and refrain from committing the same sin again.
- **Firm Resolution to Avoid the Sin (Azm al-Tawbah)**: There must be a firm resolve not to return to the sin in the future, indicating a commitment to change and reform.
- **Making Amends if Necessary (Ithaar al-Haqq)**: If the sin involved wronging another person, the person must seek to make amends by either compensating for the harm done or asking for forgiveness from the wronged party.

Quranic Reference:

"Except for those who repent, believe and do righteous work. For them Allah will replace their evil deeds with good. And ever is

Allah Forgiving and Merciful."
(Quran, 25:70)

- This verse reassures that Allah accepts sincere repentance, replacing the bad deeds with good ones for those who truly repent and strive to do righteous deeds.

4. The Role of Tawbah in Spiritual Cleansing

- Tawbah serves as a **spiritual purification**, allowing a person to cleanse their heart and soul of the negative effects of sin. Repentance is not just an external act but involves internal transformation, where the believer seeks to align their heart and actions with the will of Allah.
- **Hadith**:
  "Whoever repents before the sun rises from the west (i.e., before the Day of Judgment), Allah will forgive him." **(Sahih Muslim, 2703)**
- This hadith emphasizes that repentance has the potential to cleanse the soul of all sins if done sincerely, even if the person has committed numerous wrongdoings.

5. The Mercy and Forgiveness of Allah

- Tawbah emphasizes that **Allah is All-Merciful** and ready to forgive His servants if they turn to Him in repentance. Allah's mercy is vast, and no sin is too great to be forgiven if one sincerely repents.
- **Quranic Reference**:
  "Say, 'O My servants who have harmed yourselves by your own hands, do not despair of Allah's mercy. Allah forgives all sins; He is truly the Most Forgiving, the Most Merciful.'" **(Quran, 39:53)**
- This verse offers hope to those who feel burdened by their sins, assuring them that Allah's mercy is greater than their sins and that

forgiveness is always available to those who seek it.

6. Types of Tawbah

- **Tawbah from Major Sins (Kabair)**: These are the serious transgressions such as shirk (associating partners with Allah), murder, and adultery. Repentance from these sins requires sincere regret, ceasing the sinful actions, and firm resolve to avoid them.
- **Tawbah from Minor Sins (Saghair)**: These are the less severe sins that people commit regularly. Islam encourages ongoing repentance for these, recognizing human imperfection and the need for continuous self-reflection.
- **Tawbah for Intentional and Unintentional Sins**: Repentance is required for both deliberate and unintentional actions, with a greater emphasis on sincere remorse for intentional sins and effort to avoid repeating them.

7. The Timeliness of Tawbah

- Islam teaches that repentance should be sought **immediately** after realizing a sin has been committed, without delay, as life is uncertain and the opportunity for repentance may not always be available.
- **Hadith**:
  "Make repentance to Allah, for I repent to Him a hundred times a day."
  (Sahih Muslim, 1907)
- The Prophet Muhammad (peace be upon him) exemplified the constant need for repentance, despite his sinlessness, encouraging believers to seek Allah's forgiveness regularly.

8. The Role of Tawbah in Strengthening the Relationship with Allah

- Tawbah is a means of **spiritual renewal** and strengthening the relationship between a believer and Allah. It is an opportunity for a person to demonstrate humility, acknowledge their weaknesses, and rely on Allah's mercy.
- **Quranic Reference**:
  "Indeed, Allah loves those who are constantly repentant and loves those who purify themselves."
  (Quran, 2:222)
- This verse highlights that Allah not only forgives those who repent but also loves them, reinforcing the idea that repentance brings the believer closer to Allah.

9. The Rewards of Tawbah

- Allah promises immense rewards for those who repent sincerely. Their sins are forgiven, and they are granted Allah's mercy, which ultimately leads to eternal success in the Hereafter.
- **Hadith**:
  "If a servant repents, Allah turns towards him and forgives him, as if he has no sin."
  (Sahih Bukhari)
- This hadith indicates that sincere repentance can erase the effects of sin, purifying the individual and enabling them to earn Allah's forgiveness.

Steps for Performing Tawbah

The process of repentance in Islam involves several key steps:

1. **Recognizing the Sin**: Acknowledging that a sin has been committed and understanding the wrongfulness of the action.
2. **Feeling Genuine Regret**: Experiencing remorse for the sin and its impact on one's relationship with Allah.
3. **Stopping the Sin**: Immediately ceasing the sinful behavior and making a commitment not to return to it.
4. **Making a Firm Resolve**: Ensuring a strong intention never to repeat the sin again.
5. **Seeking Forgiveness from Allah**: Asking Allah for forgiveness and mercy through sincere supplication (dua) and invoking His names.

STRAND 5:AKHLAQ

VIRTUES IN ISLAM:

- MODESTY,
- CONTENTMENT AND TRUSTWORTHYNESS

In Islam, **Akhlaq** refers to a person's character and moral conduct, which is guided by the teachings of the Quran and the example set by the Prophet Muhammad (peace be upon him). It is central to the faith as it shapes how a Muslim interacts with others and upholds their responsibilities to Allah and society.

Three key virtues in Islam—**modesty (haya)**, **contentment (rida)**, and **trustworthiness (amanah)**—are fundamental aspects of good character that contribute to a believer's spiritual growth and social harmony. These virtues not only reflect a Muslim's relationship with Allah but also their interactions with other people.

1. Modesty (Haya)

Modesty in Islam, known as **haya**, is one of the most important virtues. It encompasses humility, self-respect, and a sense of dignity in the way a person carries themselves in various aspects of life, including behavior, dress, speech, and interaction with others. Modesty is about recognizing one's worth in the eyes of Allah and acting with decorum and humility in all circumstances.

Quranic Reference on Modesty:

"And tell the believing women to lower their gaze and guard their private parts and not to display their adornment except that which [ordinarily] appears thereof and to wrap [a portion of] their headcovers over their

chests."

(Quran, 24:31)

- This verse emphasizes modesty in dress and behavior, advising both men and women to maintain their dignity and humility by lowering their gaze and guarding their modesty in public.

Hadith on Modesty:

"Modesty is part of faith, and faith is in Paradise."
(Sahih Muslim)

- The Prophet Muhammad (peace be upon him) taught that modesty is an essential component of faith, and practicing it will lead to rewards in the Hereafter.

Modesty as a Reflection of Faith:

- **Haya** is not limited to physical appearance but extends to all aspects of one's life. It encourages modesty in speech, behavior, and attitudes, and discourages pride, arrogance, or displaying one's weaknesses or flaws excessively.
- **True modesty** requires that a person's actions, appearance, and intentions are guided by a consciousness of Allah and respect for the dignity of others. A modest person does not seek attention or public admiration, instead seeking the pleasure of Allah in all aspects of life.

2. Contentment (Rida)

Contentment (rida) in Islam is a spiritual state of being satisfied with the provisions and decrees of Allah. It is about accepting both the good and the difficult moments of life with gratitude, trust in Allah's wisdom, and a deep understanding
that Allah's plan is always for the best. Contentment helps a believer remain calm, composed, and at peace regardless of their circumstances, as they trust

that whatever happens is part of Allah’s divine will.

Quranic Reference on Contentment:

"But those who believe are stronger in love for Allah."
(Quran, 2:165)

- This verse alludes to the deep love and contentment believers feel for Allah, which leads them to be satisfied with whatever Allah decrees for them.

"And it is He who provides for you from the heavens and the earth. There is no god except Him."
(Quran, 35:3)

- The verse reminds Muslims that all provision comes from Allah, fostering gratitude and contentment with whatever is provided.

Hadith on Contentment:

"Whoever is content with what Allah has given him, his heart will be at peace."
(Sahih al-Bukhari)

- This hadith underscores the importance of contentment as a means to attain peace of mind and spiritual tranquility.

Contentment as a Virtue:

- **Rida** encourages a person to be grateful for whatever they have, not envying others or desiring more than what is decreed for them. When a person is content with what Allah has given them, they experience a sense of inner peace and acceptance, even in the face of trials.
- It also leads to **gratitude** (shukr) towards Allah, where one recognizes

the countless blessings bestowed upon them, whether material, spiritual, or relational. Contentment helps Muslims avoid the negative emotions of greed and jealousy, leading to a more fulfilling and peaceful life.

3. Trustworthiness (Amanah)

Trustworthiness (amanah) in Islam refers to the quality of being reliable, honest, and responsible, especially in fulfilling the duties entrusted to an individual. Islam emphasizes the importance of upholding one's promises, keeping secrets, and being true to one's word. Trustworthiness is a core component of good character, reflecting a Muslim's integrity in their dealings with others and their responsibility toward Allah.

Quranic Reference on Trustworthiness:

"Indeed, Allah commands you to render trusts to whom they are due and when you judge between people to judge with justice.
Excellent is that which Allah instructs you. Indeed, Allah is ever Hearing and Seeing."
(Quran, 4:58)

- This verse highlights the importance of fulfilling trusts and responsibilities. Upholding one's trust is a direct command from Allah, and it is a demonstration of faith and moral integrity.

"And those who are to their trusts and their promises attentive."
(Quran, 23:8)

- This verse further emphasizes that a true believer is attentive to the fulfillment of trusts and promises, showing that trustworthiness is a hallmark of a righteous person.

Hadith on Trustworthiness:

"When a man tells something and then goes away, it is a trust."
(Sunan Abu Dawood)

- This hadith shows the significance of maintaining confidentiality and being true to one's word, as even private conversations are considered a trust.

Trustworthiness as a Virtue:

- **Amanah** is not limited to material possessions but also includes the protection of one's responsibilities, such as
  the trust placed in a person's care over others' rights, time, and even knowledge. Being trustworthy means fulfilling one's duties, whether in personal relationships, business, or community responsibilities.
- Trustworthiness extends to **keeping promises** and fulfilling commitments. A person who is trustworthy is someone others can rely on, and this trust in relationships strengthens bonds and fosters peace in society.
- **Betraying trust** in any form is considered a major sin in Islam, as it harms the individual, the community, and one's relationship with Allah.

SIGNIFICANCE OF ISLAMIC MORALITY

Akhlaq refers to the moral character and conduct in Islam. It encompasses a wide range of virtues, values, and ethical behaviors that Muslims are encouraged to cultivate in their daily lives, and it is integral to the overall practice of faith.
Islamic morality, or **Islamic ethics**, provides a framework for how a Muslim should interact with others, uphold justice, and develop an upright character in the eyes of Allah. The significance of **Islamic morality** is immense, as it is directly tied to a Muslim's relationship with Allah, their social interactions, and their spiritual development.

Significance of Islamic Morality (Akhlaq)

1. Reflection of Faith and Taqwa (God-Consciousness)

Islamic morality is not merely about external actions but reflects a deep-rooted connection with **taqwa** (God- consciousness). The moral conduct of a believer is a manifestation of their inner faith and piety. In Islam, moral actions are a direct extension of the believer's devotion to
Allah, as every act is performed with the intention of pleasing Allah.

- **Quranic Reference**:
  "Indeed, the most noble of you in the sight of Allah is the most righteous of you."
  (Quran, 49:13)
  - This verse emphasizes that morality and righteousness, which reflect one's God-consciousness, are the most important criteria in the eyes of Allah.
    Thus, **good character (akhlaq)** is a sign of a person's closeness to Allah.

- **Hadith**:

  "The best of you are those who have the best character."

  (Sahih Bukhari)

- The Prophet Muhammad (peace be upon him) taught that a key indicator of a believer's piety is their moral character. A good Muslim's behavior reflects their internal relationship with Allah.

2. Means of Gaining Allah's Pleasure and Forgiveness

Islamic morality plays a vital role in securing **Allah's pleasure** and forgiveness. A person's good conduct is highly rewarded in Islam, and righteous actions help lead the believer toward Paradise. The Quran and the teachings of the Prophet Muhammad (peace be upon him) stress the importance of good character in the pursuit of divine approval.

- **Quranic Reference**:
  "And speak to people good [words]..."
  (Quran, 2:83)
  - This verse encourages good speech, which is an essential aspect of Islamic morality. The quality of one's words reflects their character, and speaking kindly and justly is a means of gaining Allah's favor.
- **Hadith**:
  "He who does not show mercy, no mercy will be shown to him."
  (Sahih Muslim)
  - The Prophet Muhammad (peace be upon him) taught that **mercy** is an essential quality that defines good character. Acts of mercy, kindness, and forgiveness help attract Allah's mercy towards the believer.

3. The Foundation of Strong Social Relationships

Islamic morality is crucial in building and maintaining **strong social ties** within families, communities, and society as a whole. The Prophet Muhammad (peace be upon him) emphasized good behavior, justice, and kindness toward others, recognizing that personal conduct has a direct impact on social harmony.

- **Quranic Reference**:
  "O you who have believed, let not a people ridicule [another] people; perhaps they may be better than them..." **(Quran, 49:11)**
  - This verse teaches that Muslims should avoid actions that could harm others, such as mockery or dishonoring fellow human beings. Upholding good moral conduct is essential for promoting a society based on respect and mutual understanding.
- **Hadith**:
  "None of you truly believes until he wishes for his brother what he wishes for himself."
  (Sahih Bukhari)
  - The Prophet Muhammad (peace be upon him) emphasized the importance of empathy and mutual respect, which are essential components of a harmonious society. A person who upholds good character will seek the well-being of others, contributing to a peaceful and just society.

4. Guidance for Personal Spiritual Growth

Islamic morality is a key aspect of **personal spiritual growth**. Following the ethical guidelines of Islam helps believers develop a strong moral compass, resist temptation, and grow in their faith. Good character serves as a means of self- purification, helping a Muslim to cleanse their heart and soul from

negative traits such as pride, envy, and anger.

- **Quranic Reference**:
  "Indeed, Allah commands you to act justly, to do good, and to liberally give to relatives..."
  (Quran, 16:90)
    - This verse calls believers to act with justice and do good for the sake of Allah, which leads to spiritual growth and purification of the soul.
- **Hadith**:
  "Whoever believes in Allah and the Last Day, let him speak good or remain silent."
  (Sahih Bukhari)
    - This hadith teaches that one of the best ways to purify oneself and develop good character is to focus on speaking positively, as words can greatly affect the heart and soul.

5. A Path to Inner Peace and Happiness

Good character in Islam is not only a tool for gaining Allah's pleasure, but it also leads to **inner peace** and **happiness** in this life. Moral conduct such as humility, forgiveness, and kindness helps a person develop a peaceful and contented heart. By avoiding negative emotions like anger, jealousy, and pride, and replacing them with virtues like patience, gratitude, and humility, a Muslim can achieve tranquility in their life.

- **Quranic Reference**:
  "Indeed, with hardship comes ease."
  (Quran, 94:6)
    - This verse reminds believers that facing challenges and practicing good character during difficult times leads to ultimate ease and spiritual growth. Patience, humility, and trust in Allah's

plan contribute to a calm and contented heart.

- **Hadith**:

  "The strong person is not the one who is able to overpower others, but the one who controls themselves when they are

angry."

(Sahih Bukhari)

- This hadith teaches that controlling one's emotions, especially in the face of anger, is a sign of true strength. Inner peace comes from mastering one's emotions and reactions, which is a reflection of good character.

6. Building Trust and Integrity in Society

Islamic morality, particularly the virtues of honesty and trustworthiness, is central to building **trust** and **integrity** in society. The Prophet Muhammad (peace be upon him) was known as **Al-Amin** (The Trustworthy), and he placed great emphasis on fulfilling promises, being honest, and safeguarding others' rights.

- **Quranic Reference**:
  "Indeed, Allah commands you to render trusts to whom they are due and when you judge between people to judge with justice."
  (Quran, 4:58)
  - This verse underscores the importance of trustworthiness and justice, which are foundational elements of a morally upright society.
- **Hadith**:
  "When a man tells something and then goes away, it is a trust."
  (Sunan Abu Dawood)
  - This hadith emphasizes that even words spoken in confidence are a trust that must be preserved. Trustworthiness in all aspects of life—whether in business, personal relationships, or public dealings—is vital to the proper functioning of society.

7. Role in Promoting Justice and Fairness

A key element of Islamic morality is the commitment to **justice** and **fairness**. Justice is not only a legal concept but also a moral one, guiding individuals to treat others equitably, without bias or prejudice. Upholding justice is integral to Islamic ethics and is essential in maintaining peace and harmony in society.

- **Quranic Reference**:
  "O you who have believed, be persistently standing firm in justice, witnesses for Allah, even if it be against yourselves or parents and relatives."
  (Quran, 4:135)
  - This verse instructs Muslims to uphold justice at all costs, even when it is difficult or goes against personal interests. Moral conduct in Islam requires that justice be a priority in all aspects of life.

AKLAQ:
PROHIBITIONS IN ISLAM

In Islam, **Akhlaq** refers to moral and ethical conduct, which governs all aspects of a Muslim's life, including personal behavior, social interactions, and spiritual obligations. One of the key areas of Islamic ethics is **sexual morality**. Islam emphasizes the sanctity and dignity of the human body and establishes clear guidelines to regulate sexual behavior in order to protect individuals and society from harm. The **sexual prohibitions in Islam** aim to ensure that sexual conduct is pure, respectful, and lawful, within the bounds of marriage and in accordance with Islamic teachings.

1. Adultery (Zina)

Zina refers to unlawful sexual intercourse outside the confines of a legal marriage. In Islam, both premarital and extramarital sexual relations are strictly prohibited. The punishment for **zina** is severe, but it is a punishment meant to deter people from engaging in immoral behavior.

Quranic Reference on Adultery (Zina):

"And do not approach unlawful sexual intercourse. Indeed, it is ever an immorality and is evil as a way."
(Quran, 17:32)

- This verse prohibits engaging in or even approaching illicit sexual behavior, making it clear that such actions are inherently immoral and harmful to both individuals and society.

Hadith on Adultery (Zina):

"When a man commits zina, faith departs from him."
(Sahih Bukhari, 2475)

- This hadith highlights the spiritual impact of committing zina. It is a major sin in Islam, and it undermines the believer's faith and moral integrity.

2. Homosexuality

In Islam, **homosexuality** is considered haram (forbidden), as sexual relations are only permissible between a man and a woman within the confines of marriage. Islamic teachings emphasize the natural and divinely ordained relationship between a husband and wife, and homosexual acts are seen as an offense to Allah's design for human sexuality.

Quranic Reference on Homosexuality:

"Do you approach the men of the worlds, and leave what your Lord has created for you of your wives? But you are a people transgressing."
(Quran, 26:165-166)

- This verse refers to the people of Lot (Lut), who were destroyed for engaging in homosexual acts. Islam views these acts as a severe transgression of the natural order and divine law.

Hadith on Homosexuality:

"Whoever you find doing the actions of the people of Lot, kill the one who does it and the one to whom it is done."
(Sunan Abu Dawood, 4462)

- The Prophet Muhammad (peace be upon him) made it clear that homosexuality is forbidden, and strong measures are prescribed for those who engage in such acts.

3. Incest (Mahram Relations)

Incest—sexual relations between close relatives—is strictly prohibited in Islam. The Quran outlines the prohibitions on marriage and sexual relations within specific family relationships, including parents, children, siblings, aunts, uncles, and others.

Quranic Reference on Incest:

"Prohibited to you [for marriage] are your mothers, your daughters, your sisters, your paternal aunts, your maternal aunts, your brother's daughters, your sister's daughters, your foster mothers, and your foster sisters..."
(Quran, 4:23)

- This verse lists the close family relations with whom marriage and sexual relations are prohibited, emphasizing the sanctity of family bonds and the importance of safeguarding them.

4. Masturbation

Masturbation in Islam is a debated issue among scholars, with differing opinions based on the interpretation of Islamic texts. Some scholars consider it

haram (forbidden), while others allow it in specific circumstances where there is fear of committing **zina** (adultery). However, the general consensus is that Muslims

should avoid masturbation and seek lawful means of sexual satisfaction within marriage.

Hadith on Masturbation:

"O young men, whoever among you can marry, let him marry; for it is more effective in lowering the gaze and protecting the private parts. And whoever is not able to marry, then let him fast, for it is a shield for him." **(Sahih al-Bukhari, 5066)**

- This hadith encourages marriage as the ideal way to fulfill sexual desires, and fasting as an alternative for those who are not able to marry. It implies that self-restraint and lawful marriage are preferred over any illicit means of satisfying sexual desires.

5. Bestiality (Sexual Relations with Animals)

In Islam, engaging in sexual relations with animals is categorically prohibited. This act is seen as a grave violation of human dignity and morality.

Quranic Reference on Bestiality:

The Quran does not directly mention bestiality, but it emphasizes the importance of maintaining the sanctity and decency of sexual relations within the context of marriage between man and woman.

Hadith on Bestiality:

"Cursed is the one who does what the people of Lot did."
(Sunan Abu Dawood, 4460)

- While this hadith primarily refers to homosexuality, it has also been interpreted by scholars to condemn all forms of sexual immorality, including bestiality.

6. Pornography and Illicit Sexual Material

Engaging with **pornographic material** or any content that promotes sexual immorality is prohibited in Islam. Such content is seen as a means of corrupting the mind and leading to sinful desires. It distracts from the moral and spiritual responsibilities that Islam upholds, particularly the sanctity of modesty and chastity.

Quranic Reference on Modesty and Purity:

"Tell the believing men to lower their gaze and guard their private parts. That is purer for them. Indeed, Allah is Acquainted with what they do."
(Quran, 24:30)

- This verse calls for modesty and chastity in all forms, including the avoidance of any sexual content or behavior that can lead to sinful thoughts or actions.

7. Prostitution (Zina al-Mut'ah)

Prostitution, including the concept of temporary or “pleasure” marriages (known as **mut'ah**), is explicitly prohibited in Islam. Islam strongly discourages any form of sexual exchange for money or other material

benefits.

Quranic Reference on Prostitution:

"And do not approach unlawful sexual intercourse. Indeed, it is ever an immorality and is evil as a way."
(Quran, 17:32)

- Prostitution is prohibited as it violates the sanctity of the individual and harms both the individual and society.

8. Rape and Sexual Assault

Rape and any form of **sexual assault** are major crimes in Islam. Islam views the **dignity** and **honor** of individuals as sacred, and sexual violence is considered a severe violation of these rights. The punishment for such crimes is severe, and perpetrators are held accountable in the eyes of Allah and society.

Quranic Reference on Sexual Violence:

"Do not come near unlawful sexual intercourse. Indeed, it is ever an immorality and is evil as a way."
(Quran, 17:32)

- This verse highlights the evil of committing unlawful sexual acts, including rape. Islam provides strict legal and moral guidelines to protect individuals from sexual exploitation and harm.

STRAND 6 MUAMALAT
DOMESTIC VIOLENCE

Muamalat refers to the interactions and relationships between individuals within a society in Islamic law, particularly in the context of social, legal, and financial matters. It covers all aspects of human interaction, including family relationships, business transactions, and civil matters. One of the most crucial areas in **Muamalat** is the treatment of **spouses** and family members. Domestic violence, whether physical, emotional, or psychological, is in direct contradiction to the principles of **Muamalat** in Islam, which emphasizes justice, compassion, kindness, and the fair treatment of others.

Islamic Teachings on the Treatment of Women and Spouses

Islam places great importance on the **rights and dignity** of women and stresses the importance of mutual respect, love, and kindness in marriage. Domestic violence goes against the core values of Islamic teaching, which promotes equity, love, and respect within the family unit.

1. The Principle of Kindness in Marriage

In Islam, marriage is viewed as a sacred bond based on mutual respect, affection, and mercy. The Quran and the teachings of the Prophet Muhammad (peace be upon him) emphasize that men and women should treat each other with kindness, justice, and compassion.

- **Quranic Reference on Kindness in Marriage**:
  "And live with them in kindness. For if you dislike them – perhaps you dislike a thing and Allah makes therein much good."
  (Quran, 4:19)

- This verse highlights the importance of maintaining a loving and respectful relationship with one's spouse,

even in times of disagreement or difficulty. It calls for **kindness**, suggesting that good may come from challenges when dealt with patience and understanding.

2. The Example of the Prophet Muhammad (PBUH)

The Prophet Muhammad (peace be upon him) is considered the best example of how to treat others with respect and compassion, particularly within marriage. His treatment of his wives serves as a model for Muslim men on how to behave towards their spouses.

- **Hadith on the Prophet's Treatment of Wives**:
  "The best of you are those who are the best to their wives."
  (Sunan al-Tirmidhi, 3895)
  - This hadith emphasizes the importance of **kindness, respect, and good conduct** toward wives. The Prophet Muhammad (peace be upon him) was known for his deep respect and compassion for his wives. He never resorted to physical violence and often advised his followers to be gentle and patient with their spouses.

3. Prohibition of Harm and Abuse in Islam

Islam categorically prohibits harm and mistreatment, and domestic violence is a violation of these principles. A fundamental teaching in Islam is that no one, regardless of gender, should be harmed or abused. **Harmful behavior**, whether physical, emotional, or psychological, is not permissible in Islam.

- **Quranic Reference on Avoiding Harm**: *"Do not harm yourselves or others."* **(Quran, 4:29)**

- This verse underscores the prohibition of harm in all forms. **Domestic violence**, whether it involves hitting, verbal abuse, or controlling behavior, is incompatible with this principle.

4. The Role of Spousal Rights in Islam

Both men and women have rights and responsibilities in marriage, and Islam provides specific guidelines to protect those rights. In the case of **domestic violence**, the **victim** has the right to seek protection, justice, and support, while the perpetrator is expected to be held accountable for their actions.

- **Quranic Reference on Mutual Rights**:
  "And they (women) have rights similar to those [of their husbands] over them in a just manner..."
  (Quran, 2:228)
  - This verse confirms that women have rights in marriage that are equal in importance to those of men. The mutual rights include respect, care, and protection. Domestic violence violates these rights and contradicts the justice Islam calls for in marital relationships.

Islamic Stance on Domestic Violence

Although Islam permits men to have authority within the family, this authority does not extend to **abusing or oppressing** one's spouse. **Domestic violence** is strictly prohibited. Islam stresses the need for **mutual respect** and **equity** in marital relationships, and any form of oppression, including physical, emotional, or psychological abuse, is contrary to Islamic ethics.

1. Hitting (Discipline vs. Abuse)

Some people misunderstand certain Quranic verses or hadiths as justifying

physical discipline within marriage. However, Islamic scholars have unanimously agreed that **hitting** or

inflicting harm on a spouse is not permissible. The Quranic verse that is often cited in this context is:

- **Quranic Reference on Discipline**:
  "And those [wives] who you fear may be rebellious – advise them; and if they persist, forsake them in bed; and if they persist, strike them. But if they return to obedience, seek no means against them."
  (Quran, 4:34)
    - This verse addresses situations where there may be **disagreement** or **rebellion** within the marriage. However, the guidance is **gradual** and **symbolic**, aiming to encourage reconciliation rather than physical punishment. The Prophet Muhammad (peace be upon him) himself condemned any form of **violence** or **harshness** in marriage and emphasized treating women with dignity and care.

2. The Prophet's Example on Hitting

The Prophet Muhammad (peace be upon him) is the best example of how to act in all situations. He **never hit** his wives or any women, and he discouraged any form of violence. His approach was always **gentle** and **compassionate**.

- **Hadith on the Prophet's Treatment of Women**:
  "The best of you are those who are the best to their wives, and I am the best of you to my wives."
  (Sunan al-Tirmidhi)
    - This hadith shows that the Prophet (peace be upon him) led by example, demonstrating kindness, respect, and the highest standards of **morality** in his relationships.

3. Seeking Protection and Support

Islam allows the **victim of domestic violence** to seek **protection**, and **Islamic law** supports the legal right to seek justice for abuse. Victims are encouraged to speak out, seek support from family or community members, and, if necessary, pursue legal action. Abusers are held accountable for their actions and may face legal or social consequences for causing harm.

4. Divorce and Separation

Islam does not encourage divorce, but it allows it as a last resort when a marriage cannot be reconciled. If domestic violence occurs, the victim is not bound to stay in an abusive relationship and may seek divorce as a means of **protection**.

- **Quranic Reference on Divorce**:
  "And when you divorce women and they have fulfilled their term, then either retain them according to reasonable terms or release them according to reasonable terms..." **(Quran, 2:231)**
    - This verse highlights that divorce can be an option when reconciliation is not possible. While **divorce** is discouraged, it can be a necessary step to end an abusive marriage and protect the well-being of the victim.

IDDAH

Muamalat refers to the body of Islamic law that governs the interactions, relationships, and transactions between individuals in society, including personal, social, legal, and financial matters. One of the important topics within **Muamalat** is the concept of **Iddah** (also spelled **'Iddah** or **iddah**), which refers to the waiting period that a woman must observe after the end of her marriage, either due to **divorce** or the **death** of her husband.

Iddah serves as both a period of **spiritual purification** and **legal clarification**. It ensures that the woman's **marital status** is clear, particularly concerning issues such as determining the **paternity** of any children and preserving the sanctity of the marriage bond. The length and requirements of Iddah depend on the specific circumstances, including whether the marriage ended due to divorce or death.

1. Definition of Iddah

Iddah is an obligatory waiting period that a woman must undergo following the termination of her marriage. The purpose of this waiting period is to ensure that there is no confusion about the woman's **marital status** and to clarify whether she is pregnant. During this period, the woman is expected to refrain from remarrying.

The concept of Iddah is rooted in **Islamic jurisprudence**, and it has both **spiritual** and **legal** significance. The Quran, Hadith, and Islamic scholars provide clear guidelines on how Iddah is to be observed.

2. The Purpose of Iddah

The primary purposes of Iddah are:

- **Determining paternity**: If a woman is pregnant, the Iddah period allows time for the pregnancy to be confirmed. It ensures that the child's paternity can be correctly ascribed to the former husband or the current marriage. This helps avoid any confusion regarding the father of a child.
- **Spiritual reflection and emotional healing**: The waiting period provides the woman with time to emotionally recover from the end of the marriage, whether due to divorce or the death of her husband. It allows her space to process the changes in her life.
- **Respect for the previous marriage**: Iddah is also a mark of respect for the previous marriage and the bond that existed between the woman and her former husband.

3. Iddah in Case of Divorce

When a woman's marriage ends due to **divorce**, the length of her Iddah period depends on several factors:

a) If the Woman Is Not Pregnant

- **If the woman is not pregnant**, the **Iddah** is typically **three menstrual cycles** (approximately three months).
    - **Quranic Reference**:
      "And divorced women shall wait concerning themselves for three monthly periods..." **(Quran, 2:228)**
        - This verse clearly defines the waiting period for a woman who is not pregnant, establishing that she must wait for

three menstrual cycles before remarrying.

b) If the Woman Is Pregnant

- **If the woman is pregnant**, the Iddah lasts until the child is born, regardless of how much time has passed since the divorce. This ensures that the paternity of the child can be clearly established.
  - **Quranic Reference**:
    "And those who are pregnant, their term [of Iddah] is until they give birth."
    (Quran, 65:4)
    - This verse clarifies that for a woman who is pregnant at the time of divorce, the Iddah extends until the delivery of the child, ensuring the determination of paternity.

c) Iddah for Women Who Do Not Have Menstrual Cycles (e.g., Elderly or Postmenopausal Women)

For women who have reached menopause or are unable to menstruate, the Iddah period is **three lunar months** (approximately three months), as the absence of menstruation makes the regular calculation based on menstrual cycles impractical.

- **Quranic Reference**:
  "And those who no longer expect menstruation among your women, if you have doubts, then their period is three months..."
  (Quran, 65:4)
  - This is relevant for women who are beyond childbearing age or otherwise do not have menstruation.

4. Iddah in Case of Death

When a woman's husband passes away, the Iddah period is longer than in the case of divorce, and it has additional guidelines:

a) The Iddah Period for Widows

- The Iddah period for a woman whose husband has died is **four months and ten days**.
  - **Quranic Reference**:
    "And those who die among you and leave wives behind, their wives shall wait for four months and ten days..."
    (Quran, 2:234)
    - This period is prescribed to ensure that the woman is not pregnant from the deceased husband and to provide the widow time to mourn the loss of her spouse.

b) If the Woman Is Pregnant

- If the woman is pregnant, the Iddah period lasts until the child is born, just like in the case of divorce. This ensures the paternity of the child is clarified, and the woman is not mistakenly considered to be free to remarry while carrying her deceased husband's child.

5. Rules During Iddah

- **No Remarriage**: During the Iddah period, a woman is not allowed to remarry. This rule serves to protect the sanctity of the previous marriage and allows for the identification of any potential offspring from that union.
  - **Quranic Reference**:

"Do not prevent them from marrying their husbands when they agree among themselves in a lawful

manner."

(Quran, 2:232)

- This verse refers to the waiting period after divorce but emphasizes that remarriage is not allowed during Iddah.

- **Observing Modesty**: During Iddah, a woman is expected to observe **modesty** and **restrain herself from any flirtatious behavior or conduct** that might indicate she is preparing for a new relationship. She is also generally required to stay in her home during the waiting period unless there are special circumstances (such as needing to work).
  - **Hadith on Iddah**:

    "A woman who is in her Iddah (after divorce or death of husband) must remain in her home and not leave unless there is an urgent necessity."

    (Sahih Muslim, 1482)

    - This hadith advises that a woman in Iddah should remain in her home unless there is an urgent need to leave, such as for work, illness, or other essential matters.

6. Exceptions and Flexibility

Islamic law allows for some flexibility in the enforcement of Iddah:

- **Mutual Agreement**: In certain cases, a divorced couple may agree to end the Iddah period earlier, especially in cases where no children are involved, and both parties are in agreement.
- **Invalidating Iddah**: If the woman becomes pregnant during the Iddah period, the waiting period is automatically extended until the child is born, even if the Iddah period had previously ended.

7. Significance of Iddah

The Iddah period is more than just a waiting period; it serves several purposes:

- **Ensuring clarity regarding paternity**: In the event that a woman becomes pregnant after divorce or her husband's death, Iddah helps to ensure the correct identification of the father of the child.
- **Respect and dignity**: It provides a period of reflection and dignity for the woman, especially following a divorce or the loss of her spouse. The Iddah period allows for emotional healing and respect for the sanctity of the previous marriage.
- **Protection of social order**: It prevents the confusion of family ties and ensures that the rights of all parties, especially children, are properly upheld.

CHILD CUSTODY

In **Muamalat**, which refers to the dealings and relationships between individuals in Islam, **child custody** is a significant issue when it comes to family law. The Islamic approach to child custody emphasizes the well-being, protection, and upbringing of children in a balanced manner. This issue typically arises in the context of **divorce** or **separation**, where both parents might have competing claims for the custody of their children.

Islamic law places great importance on the **rights of children** and the **obligations of parents** towards their children. Child custody in Islam aims to ensure that the child's welfare is prioritized above all, focusing on **nurturing, care, protection**, and **proper upbringing**.

1. The Right of Custody in Islam

Islamic law has specific rules regarding **custody** of children following the **divorce** of parents. These rules primarily focus on the well-being and best interests of the child, with clear guidelines on who should take care of the child depending on their age, gender, and the circumstances of the divorce.

a) The Mother's Right to Custody

In general, **Islamic law** gives **priority** to the **mother** for the custody of children, especially in the early years of the child's life. The mother is considered the most capable caregiver for a young child due to her **nurturing role** and emotional attachment to the child.

- **Quranic Reference on Maternal Responsibility**:
  "We have enjoined upon man [care] for his parents. His mother carried him with hardship upon hardship, and his weaning is in two years. Be grateful to Me and to your

parents; to Me is the [final] destination."

(Quran, 31:14)

- This verse acknowledges the intense physical and emotional effort that a mother makes in raising her child, which is a reason for Islam giving priority to the mother in early custody matters.

The **mother** retains custody of children generally until they reach a certain age, after which the custody may be transferred to the father or another suitable guardian, depending on the circumstances.

- **Hadith on Maternal Custody**:
  "You (the mother) have the best right to the child, as long as you do not remarry."
  (Sahih Muslim, 1442)
  - This hadith clearly indicates that the mother's right to custody of her children is prioritized until a certain stage in the child's development, especially as long as she remains unmarried.

b) Age of Custody

The child's age and gender also influence custody arrangements in Islamic law. Typically, custody is granted to the mother until the child reaches a certain age, which can vary among Islamic scholars and schools of thought, but often ranges from **7 to 10 years**.

- **For Sons**:
  In most cases, **sons** may remain with their mother until they reach the age of **7** or sometimes even up to **10 years old**, after which the custody is transferred to the father.
- **For Daughters**:
  Daughters are generally expected to stay with their mother for a longer

period, often until they are **9 or 10 years old**. After this age, custody may pass to the father,

but the mother can retain custodial rights if there are special circumstances.

c) The Role of the Father

While the mother usually has the primary right to custody of young children, the **father** plays an essential role in a child's life and well-being, particularly after the child reaches an age where they can benefit from the **father's guidance and protection**. Fathers are responsible for providing for their children, financially supporting them, and ensuring their **general welfare**.

Islamic law recognizes the father's right to have custody once the child has grown older and is capable of understanding and benefiting from the father's guidance. If the mother is unable to care for the child, such as in cases where she remarries or is deemed unfit for custody, the **father** may be granted custody.

2. Conditions of Custody

While there is a general guideline for child custody in Islamic law, the following conditions apply:

a) The Ability to Provide Proper Care

Both parents are expected to provide for the child's physical, emotional, and **spiritual well-being**. The parent seeking custody must demonstrate that they can meet the child's needs in all areas of life, including financial support, emotional care, and physical security.

b) The Parent's Moral Integrity

The custody arrangement will take into consideration the **moral integrity** of the parent. If a parent is known to be involved in immoral behavior (e.g., substance abuse, criminal activity, neglect, or abuse), they may lose their custodial rights, as the best interest of the child is of utmost importance.

c) The Parent's Stability

Islamic law requires that the custodian parent be able to provide **emotional and psychological stability**. If a parent is emotionally unstable or incapable of providing a stable home environment, the court will consider alternative custody arrangements.

d) The Child's Preference (for Older Children)

In certain cases, especially when a child reaches an age of understanding (typically after the age of **7**), their opinion may be taken into account. In some Islamic legal traditions, older children are given the right to express a preference about who they would like to live with.

- **Hadith on the Child's Preference**:
  "The child is for the father, and the mother is the best caretaker for him until he reaches an age of understanding."
  (Sunan Abu Dawood)
    - This hadith suggests that when a child is mature enough, their wishes can be taken into account when determining custody.

3. Legal Custody vs. Physical Custody

In Islamic law, **custody** may be divided into two forms:

- **Legal Custody**: Refers to the **decision-making authority** for the child, including matters such as education, health care, and general welfare. Both parents retain legal custody unless a court finds it necessary to grant full legal custody to one parent based on circumstances.
- **Physical Custody**: Refers to the **actual living arrangements** of the child, determining who the child lives with on a daily basis. As mentioned earlier, **the mother** often has primary physical custody, especially for younger children.

4. Custody After the Death of a Parent

In cases where one parent dies, the surviving parent generally retains custody of the children. However, if the surviving parent is deemed unfit for custody, the responsibility for custody may be transferred to other family members, such as grandparents or other close relatives.

- **Hadith on Custody After Death**:
  "A mother has the greatest right to her child after his father."
  (Sahih al-Bukhari)
  - This hadith indicates that even in the case of the father's death, the mother is still entitled to custody of the child unless she is incapable of fulfilling her duties.

5. Custody in Special Circumstances

Islamic law also addresses **special circumstances** such as the mother remarrying, or cases of abuse or neglect, where custody arrangements may change to safeguard the child's best interests. If a mother remarries, custody may be transferred to the father, especially if the new husband is deemed unsuitable for caring for the child.

- **Hadith on Custody After Remarriage**:
  "You (the mother) have the greatest right to the child, as long as you do not remarry."
  (Sunan Abu Dawood)
  - This hadith implies that a mother who remarries may lose custody of her children, as the stepfather may not have the same emotional bond with the children as their biological mother.

6. Importance of Child Custody in Islam

Child custody in Islam is deeply rooted in the belief that children are a **trust** (Amanah) from Allah, and both parents have an **Islamic duty** to ensure that the child is raised in an environment of **love, care, and justice**. Islamic law strives to provide **balance** and ensures that the child's welfare is prioritized above all other considerations.

- **Quranic Reference on Parental Responsibility**:
  "And We have enjoined upon man [care] for his parents. His mother carried him with hardship upon hardship..." **(Quran, 31:14)**
  - This verse highlights the heavy responsibility of parents toward their children, emphasizing care, protection, and the best interest of the child.

POLIGAMY IN ISLAM

Polygamy in Islam refers to the practice where a man has more than one wife simultaneously. The most common form of polygamy permitted in Islam is **polygyny**, where a man may marry up to four wives. Islam's teachings on polygamy are often discussed in the context of **Muamalat**, the area of Islamic law that governs social, economic, and personal relationships.

1. Quranic Foundation for Polygamy

Polygamy in Islam is regulated by the **Quran**, and it is subject to specific conditions and guidelines designed to protect the rights of all individuals involved.

- **Quranic Reference on Polygamy**:
  "Then marry those that please you of [other] women, two or three or four. But if you fear that you will not be just, then [marry only] one..." **(Quran, 4:3)**
  - This verse establishes the permission for men to marry up to **four wives**, but it also places a strict condition: **justice** must be maintained. If a man fears that he will not be able to treat all of his wives justly, then he is commanded to marry only one.

2. Conditions for Polygamy

While polygamy is permitted in Islam, it comes with very important conditions. These conditions emphasize **justice** and **equity** and place significant moral and ethical responsibility on the man.

a) Justice Between Wives

One of the most important conditions for polygamy in Islam is **justice** between all wives. The Quran specifically stresses that if a man fears he cannot be just, he should not marry more than one.

- **Quranic Reference on Justice**:
  "And you will never be able to be equal between wives, even if you should strive [to do so]. So do not incline completely [toward one] and leave another hanging."
  (Quran, 4:129)
  - This verse acknowledges the inherent difficulty in being absolutely fair and just between multiple wives. While a man may strive for justice, the Quran recognizes that complete equality is hard to achieve, particularly in terms of emotional attachment and affection. Therefore, men are urged not to **neglect** or **harm** one wife in favor of another.

b) Financial Responsibility

A man must also have the **financial means** to support multiple wives. He is responsible for providing for each wife in terms of **basic needs** like food, clothing, shelter, and other financial responsibilities.

- **Hadith on Financial Responsibility**:
  "The most worthy of your wives to marry are those who provide you with the most in dowry and who are the most loving and affectionate."
  (Sunan Ibn Majah, 1845)
  - This hadith underscores the importance of **affection** and **financial responsibility** in marriage. A man must be capable of maintaining a good standard of living for each wife.

c) Equal Treatment

The man must treat all his wives **equally** in terms of material support, time, and attention. This includes providing each wife with a fair share of the household's resources and time, as well as ensuring that no wife is neglected or harmed.

- **Hadith on Equal Treatment**:
  "Whoever has two wives and is inclined toward one of them [more than the other], he will come on the Day of Judgment with a side of his body leaning."
  (Sunan Abu Dawood, 2134)
  - This hadith warns that failing to treat wives equally in affection and support could lead to consequences in the hereafter.

3. The Historical Context of Polygamy in Islam

Polygamy was practiced in pre-Islamic Arabia, but it was often unchecked, with men marrying an unlimited number of women, sometimes without any regard for fairness or justice. Islam **regulated** this practice and placed clear **limitations** and **ethical guidelines**.

- **Reformative Aspect**: Islam limited the number of wives a man could have to **four** and required him to treat them justly, ensuring that polygamy was no longer an arbitrary or unjust practice but one rooted in **responsibility** and **ethical obligation**.
- **Quranic Reform**:
  "And if you fear that you will not deal justly with the orphans, then marry those that please you of [other] women, two or three or four. But if you fear that you will not be just, then [marry only] one..."
  (Quran, 4:3)

- This verse was revealed in a context where polygamy was practiced, and many orphans and widows were

left without care after the loss of their husbands. The Quran permitted polygamy to offer **protection** to these women, but only if the husband could ensure **fair treatment**.

4. The Role of the Wife in Polygamy

Islamic law recognizes the rights of women in a polygamous marriage. While polygamy is permitted, the wives also have rights, and their **consent** is essential.

- **Wife's Rights**:
  - A wife has the right to **fair treatment** and **equitable support**. She should not be **neglected** or **treated unfairly** due to the presence of another wife.
  - The wife also has the right to **privacy** and **individuality**, as well as the right to a separate **residence** and **personal space**.
- **Consent**: While Islam does not require the wife's consent for polygamy, it **encourages mutual respect** and communication between spouses. Some scholars believe that the wife's consent should be sought, especially if the situation is likely to cause emotional harm.
- **Financial Rights**: Each wife has the right to a **mahr** (dowry) upon marriage, and it is the husband's responsibility to financially support each wife fairly.

5. Ethical Considerations and Challenges

While polygamy is permitted in Islam, it is important to recognize the **ethical challenges** it may present in modern society. The practice is not without controversy, and various cultures and communities may view it differently.

Some of the ethical challenges include:

- **Emotional Impact**: There can be emotional consequences for both the husband and the wives, particularly if the

husband is unable to treat all his wives equally. This could lead to jealousy, insecurity, and tension in the household.

- **Social and Legal Issues**: In modern societies, polygamy may conflict with **local laws** or **social norms**, and it can sometimes lead to legal disputes, particularly in countries where monogamy is the law.
- **Potential for Abuse**: If polygamy is practiced without fairness, justice, or proper support, it can lead to **abuse** or **neglect**, particularly for the women involved.

6. Modern Interpretations and Practices

While polygamy is allowed in Islam, its **practice** today varies widely based on geographic, cultural, and personal factors. In many countries, especially in the West, polygamy is illegal, and the practice has become less common. However, in some Muslim-majority countries, it is still practiced under the rules of **Sharia law**.

Islamic scholars hold differing views on the practice of polygamy today:

- **Traditional Scholars**: Some scholars emphasize that polygamy remains a valid and permissible practice as long as the conditions of justice and fairness are met.
- **Reformist Scholars**: Others argue that in the modern world, where social structures have changed and gender equality is emphasized, the practice of polygamy may not be as appropriate or necessary as it once was.

STRAND 7:TRADE AND FINANCE

BORROWING AND LENDING MONEY

Borrowing and lending money is a significant aspect of **Muamalat**, the branch of Islamic law that deals with interpersonal transactions, financial dealings, and social relationships. In Islam, the practice of borrowing and lending is governed by principles of **justice**, **fairness**, and **transparency** to ensure that all parties involved are treated ethically. Islam also provides guidance on avoiding exploitative practices such as **usury (Riba)** and ensuring that financial transactions do not cause harm to either party.

1. Islamic Principles of Borrowing and Lending

Islamic financial principles emphasize **honesty**, **clarity**, and **mutual consent** in borrowing and lending agreements. Here are some key points:

a) Mutual Agreement and Fair Terms

Borrowing and lending money should be based on a clear **mutual agreement** between the lender and the borrower. Both parties must agree on the amount, the time frame, and the terms of repayment.

- **Quranic Guidance on Borrowing**:
  "O you who have believed, when you contract a debt for a specified term, write it down. Let a scribe write it between you in justice..."
  (Quran, 2:282)
  - This verse encourages formal documentation of financial agreements to prevent confusion, disputes, or misunderstandings. It also highlights the importance of fairness and transparency.

b) No Interest or Usury (Riba)

In Islam, **interest (Riba)** is strictly prohibited. This means that **lenders** cannot charge any extra amount over the principal sum borrowed. Charging interest is considered exploitative and unjust, and thus all forms of **interest-based lending** are forbidden in Islamic finance.

- **Quranic Reference on Riba**:
  "Those who consume interest cannot stand [on the Day of Judgment] except as one stands who is being beaten by Satan into insanity. That is because they say, 'Trade is just like interest.' But Allah has permitted trade and has forbidden interest..."
  (Quran, 2:275)
  - This verse categorically prohibits **Riba** and distinguishes between lawful trade and unlawful usury.

c) Loan as a Trust (Amanah)

A loan is considered an **Amanah (trust)** in Islam, which means that the borrower has a moral and legal obligation to repay the loan according to the terms agreed upon. The lender, on the other hand, is expected to deal with the borrower fairly and kindly.

- **Hadith on Honoring Loan Contracts**:
  "The borrower is a debtor, and the lender is a creditor. Both have rights over each other. Fulfill your debt and be patient in the face of delay."
  (Sahih al-Bukhari)
  - This hadith emphasizes that both parties have responsibilities and obligations, and the borrower must repay the loan, while the lender should be patient if there is any delay, provided it's not due to negligence.

d) Repayment of Loans

The repayment of loans should be carried out as agreed upon, without any undue delay or hardship for the borrower. Islam encourages lenders to show kindness and consideration toward borrowers, especially those who are struggling to repay.

- **Quranic Guidance on Repayment**:
  "If someone is in difficulty, then let there be a delay until a time of ease. But if you give [it] as charity, that is better for you if you only knew."
  (Quran, 2:280)
  - This verse emphasizes the importance of showing compassion and offering additional time to repay if the borrower is facing financial difficulties. Additionally, lending money to others is viewed as a charitable act, and forgiving part or all of the debt can be seen as a virtue.

2. Types of Loans in Islam

Islam recognizes two main types of financial agreements for borrowing and lending:

a) Qard Hasan (Good Loan)

A **Qard Hasan** is an interest-free loan given for charitable purposes. The lender does not expect any profit or benefit from the loan. This type of loan is encouraged in Islam, as it aligns with the values of helping others in need.

- **Hadith on Qard Hasan**:
  "Whoever gives a loan for the sake of Allah, the loan is returned with reward from Allah."
  (Sahih Muslim)

- This hadith encourages giving interest-free loans for the sake of helping others without expecting any profit in return.

b) Commercial Loans

In contrast to **Qard Hasan**, **commercial loans** may involve a profit-sharing arrangement, such as in the case of **Mudarabah** (profit-sharing) or **Murabaha** (cost-plus financing). These types of loans are based on **Islamic trade principles**, where profits are shared instead of charging interest.

- **Mudarabah** involves the lender providing capital to the borrower (entrepreneur), and the profits from the business venture are shared according to a pre-agreed ratio. However, any loss is borne solely by the lender, while the borrower only loses their effort.
- **Murabaha** is a cost-plus sale agreement, where the lender purchases an item and then sells it to the borrower at a higher price, with the markup being the profit margin. The borrower pays in installments.

3. Ethical Considerations in Borrowing and Lending

Islamic teachings emphasize the ethical conduct in borrowing and lending, focusing on:

a) Transparency and Clarity

Both the lender and the borrower should have a clear understanding of the terms of the loan. The contract should specify the loan amount, repayment schedule, and any other terms and conditions in a **transparent manner** to avoid future disputes.

- **Hadith on Clarity in Agreements**:
  "There should be no ambiguity in your contracts or transactions."
  (Sunan Abu Dawood)
    - This hadith emphasizes the importance of clarity in financial

agreements, which helps prevent misunderstandings and potential disputes.

b) Avoiding Exploitation and Hardship

Islam strongly prohibits **exploitative practices**, and it encourages fair and ethical dealings. The lender should not burden the borrower with **excessive terms** or take advantage of the borrower's vulnerable financial situation.

- **Hadith on Avoiding Hardship**:
  "Whoever helps a debtor in difficulty, Allah will make it easy for him on the Day of Judgment."
  (Sahih Muslim)
  - This hadith encourages mercy and understanding towards those who borrow and may face difficulty in repaying.

c) Charity and Forgiveness of Debt

In cases where the borrower faces severe financial difficulty, **forgiving the debt** or offering them an extended period for repayment is encouraged. This act is seen as a **virtuous deed** that carries rewards in the sight of Allah.

- **Quranic Reference on Forgiving Debt**:
  "And if you forgive, then it is better for you if you only knew."
  (Quran, 2:280)
  - This verse encourages forgiving part or all of a debt, especially when the borrower is facing financial hardship.

4. Consequences of Non-Repayment

If the borrower fails to repay the loan, the lender has the right to seek repayment through lawful means. However, **Islamic law discourages harshness** or exploitation in this regard.

a) Debt Collection

While Islam permits legal actions to collect debts, the process should be conducted in a **fair, just, and humane manner**. The lender should not be excessive in demanding repayment and should be willing to provide a reasonable extension of time or reduce the debt in cases of genuine hardship.

- **Quranic Guidance on Debt Collection**:
  "And if someone is in difficulty, then let there be a delay until a time of ease."
  (Quran, 2:280)
  - This verse underscores the importance of being compassionate when collecting a debt and not causing unnecessary hardship for the borrower.

b) Legal Recourse

Islamic law allows legal recourse for recovering loans, but it also encourages **mutual resolution** between the parties involved, especially if the borrower is facing genuine financial distress.

CONTEMPORARY ISSUES:

- ✓ Jihad,
- ✓ Terrorism,
- ✓ Extremism

The concepts of **Jihad**, **terrorism**, and **extremism** are significant contemporary issues in Islamic thought and are often subjects of misunderstanding, misuse, and misrepresentation, especially in the context of global politics, media, and societal conflicts. The term **Muamalat** in Islamic jurisprudence refers to the broader field of social and ethical relations, which includes both personal and collective responsibilities. The topics of Jihad, terrorism, and extremism fall under this domain, where their interpretation and application must be rooted in **Islamic teachings** of justice, ethics, and peace.

1. Jihad: Meaning and Context

Jihad is often misunderstood in the modern world, especially when it is associated with violence and extremism. However, in Islamic law and ethics, Jihad has multiple meanings and is primarily about striving in the path of God.

a) The Two Major Types of Jihad

- **Greater Jihad (Jihad al-Akbar)**: This refers to the **spiritual struggle** against sin, evil inclinations, and personal weaknesses. It is considered the most important form of Jihad, as it emphasizes **self-control**, **moral integrity**, and **spiritual purification**. This form of Jihad involves striving to be a better person, maintaining faith, and resisting temptations and inner struggles.
- **Lesser Jihad (Jihad al-Asghar)**: This refers to the **physical struggle** or

defense in the face of oppression, persecution, or aggression. It is often associated with **armed struggle**, but it is subject to strict conditions in Islamic law, such as

being declared by a legitimate authority (usually the state), being fought in self-defense, and protecting the innocent. Importantly, armed Jihad is only permitted when all other peaceful means have been exhausted.

b) Misinterpretation of Jihad

- In the modern era, **Jihad** has been **misused** by extremist groups to justify acts of violence, terrorism, and insurgency. These groups often distort the true meaning of Jihad and ignore the **Islamic principles of peace, justice, and proportionality** in warfare. True Jihad is not about **unprovoked violence** or **terrorism**, but about **defending** the **faith**, **life**, and **honor** in just circumstances.
- The **Quran** explicitly forbids violence against innocent people, and the Prophet Muhammad (peace be upon him) repeatedly emphasized peace and mercy, even during times of conflict.
    - **Quranic Guidance on Jihad**:
      "Fight in the way of Allah those who fight you, but do not transgress. Indeed. Allah does not like transgressors."
      (Quran, 2:190)
        - This verse establishes a critical principle: **defensive warfare** is only permitted, and even then, it must be **proportional** and **just**. Exceeding limits or targeting civilians is strictly forbidden.
    - **Hadith on Just Warfare**:
      "Do not kill women, children, or the elderly, and do not damage crops or trees."
      (Sunan Abu Dawood)
        - This hadith underscores that even in warfare, ethical boundaries must be respected, and acts of **terrorism** targeting innocent civilians, children, or non-combatants

contradict the principles of **true Jihad**.

2. Terrorism: An Un-Islamic Act

Terrorism, in the modern sense, involves the use of violence and intimidation, often against civilians, for political or ideological purposes. In Islam, terrorism is categorically **forbidden**, as it involves the unjust killing of innocent people, which is contrary to the teachings of the **Quran** and **Sunnah**.

a) Islamic Condemnation of Terrorism

- **Quranic Guidance**:
  "Whoever kills a soul unless for a soul or for corruption [done] in the land – it is as if he had slain mankind entirely."
  (Quran, 5:32)
  - This verse emphasizes that killing an innocent person is one of the gravest sins in Islam. It stresses the sanctity of life, and killing innocent people, as is seen in acts of terrorism, is explicitly prohibited.
- **Hadith on Protecting Life**:
  "A believer remains within the bounds of his religion as long as he does not shed blood unlawfully."
  (Sahih Muslim)
  - The Prophet Muhammad (peace be upon him) stated that shedding blood unjustly places one outside the bounds of true belief. Terrorism, which involves **indiscriminate violence** and **targeting innocent people**, is therefore **against Islamic principles**.

b) Terrorism and Misuse of Religious Ideology

Terrorist groups often claim to act in the name of **Islam**, but their actions

directly contradict the core values of the religion. They often distort religious texts, interpreting them in a way that supports their **political agenda**. These groups misuse the concept of Jihad to justify violence, while ignoring the **Quranic**

prohibitions on harming civilians, targeting religious minorities, and committing atrocities.

Islamic scholars across the world have consistently **condemned terrorism** and have clarified that it has no place in Islam. In fact, the vast majority of Muslims and Islamic leaders reject such practices and call for peace, tolerance, and understanding.

3. Extremism: A Threat to Islamic Unity and Social Harmony

Extremism refers to the ideological position of adopting radical and uncompromising views that deviate from the **moderate middle path** of Islam. Extremist ideologies often promote **violence**, **intolerance**, and **intimidation**, which can lead to social division and conflict. Islam teaches a **balanced approach**, emphasizing **mercy**, **justice**, and **compassion**.

a) Islamic Teachings on Moderation

- **Quranic Guidance on Moderation**:
  "And thus we have made you a just community that you will be witnesses over the people..."
  (Quran, 2:143)
  - Islam promotes **moderation** and **balance** in all aspects of life, including religious practice, social interaction, and political engagement. Extremism is viewed as a deviation from the **middle path** (Wasatiyyah), which is a central teaching in Islam.
- **Hadith on Avoiding Extremism**:
  "Beware! The people who went to extremes in religion were destroyed."
  (Sahih Muslim)
  - The Prophet Muhammad (peace be upon him) warned against **extremist ideologies** that go beyond the boundaries of Islam.

Such positions lead to harm, both in the individual's faith and in society at large.

b) Extremism's Threat to Muslim Unity

Extremism poses a significant **threat** to the unity of the Muslim ummah (community). It fosters division, intolerance, and **sectarianism** by promoting rigid and narrow interpretations of Islam that exclude others who do not share the same views.
This can lead to violence, discrimination, and an inability to work together for the greater good of the community.

- Islam encourages unity and calls for mutual respect, understanding, and cooperation among Muslims. The **diversity** of opinion within the Islamic tradition is not something to be feared but celebrated as long as the core values of **faith, justice, and peace** are upheld.
    - **Quranic Teaching on Unity**:
      "And hold firmly to the rope of Allah all together and do not become divided..."
      (Quran, 3:103)
        - This verse emphasizes the importance of unity within the Muslim community and calls for mutual respect and collaboration.

4. Addressing Contemporary Issues: Education, Dialogue, and Reform

In order to address the contemporary issues of Jihad, terrorism, and extremism, several key steps must be taken from both **within** and **outside** the Muslim community:

a) Education and Awareness

- It is essential to **educate** both Muslims and non-Muslims about the true teachings of Islam, particularly the principles of **peace**, **tolerance**, and

justice.

- There is a need to counter extremist ideologies with **authentic Islamic scholarship** that emphasizes moderation and the ethical foundations of Islam.

b) Interfaith Dialogue

- **Interfaith dialogue** is crucial for fostering understanding and combating the divisive effects of extremism. By engaging in constructive dialogue with people of different faiths, Muslims can build stronger bonds with others based on shared values, such as the sanctity of life, peace, and compassion.

c) Reformation of Misinterpretations

- Efforts should be made to address and **correct** the misinterpretations of Islamic texts that fuel terrorism and extremism. Religious scholars and community leaders must engage in dialogue to provide **clear, authentic, and contextualized** interpretations of Islamic teachings.

d) Promoting Peace and Justice

- Islam calls for peace, justice, and the protection of human dignity. By promoting these values in every sphere of life
  — social, economic, and political — the threat of extremism and violence can be mitigated. Governments, NGOs, and religious leaders all have a role to play in fostering a culture of **peaceful coexistence** and **social harmony**.

5. Conclusion

The issues of **Jihad**, **terrorism**, and **extremism** are complex and sensitive, particularly in contemporary times. However, Islam's teachings on peace, justice, and respect for life remain clear and unambiguous. **Jihad** should be understood as striving in the way of God, both spiritually and, if necessary, physically in self-defense, under strict ethical guidelines. **Terrorism** and

extremism are incompatible with the true teachings of Islam and should be condemned by all Muslims. Islam promotes a

balanced, moderate, and compassionate approach to life, which rejects violence and hatred.

It is essential for Muslim communities, scholars, and leaders to take proactive steps to promote the authentic message of Islam
— one of peace, justice, and moderation — and to counter any misinterpretations that lead to violence and extremism.

ISLAMIC HERITAGE: ISLAMS IN KENYA

Islam in Kenya has a rich and diverse history that spans over several centuries. The presence of Islam in Kenya can be traced back to the early periods of Islamic expansion, with both **Arab** and **Persian traders** playing a pivotal role in spreading the religion along the **East African Coast**. Over time, Islam became an integral part of Kenya's cultural and religious fabric, influencing its societies, politics, and overall heritage.

1. Early Introduction of Islam in Kenya

a) The Role of Arab Traders and Merchants

Islam was introduced to the **Kenyan coast** through **Arab traders** and **missionaries** around the **8th century**. These traders came from the Arabian Peninsula, particularly from **Oman** and **Yemen**, and they settled in the coastal cities of **Mombasa**, **Lamu**, **Malindi**, and other coastal towns. They established **trade routes** that connected the Swahili Coast to the rest of the Islamic world, particularly the Arabian Peninsula and the broader Indian Ocean region.

- **Swahili Coast**: The coastal region of Kenya, often referred to as the **Swahili Coast**, became a hub for Islamic culture. The **Swahili people**, who are a blend of Bantu and Arab descent, played a significant role in spreading Islam through trade, intermarriage, and cultural exchange.

b) The Influence of the Indian Ocean Trade Network

Islam was also spread through the extensive **Indian Ocean trade networks**. The ports along Kenya's coast were central points for the exchange of goods, including **spices**, **gold**, and **slaves**, with traders coming from regions as far as **Persia**, **India**, and **Southeast Asia**. Alongside trade, these

merchants brought **Islamic teachings**, further embedding the religion in the region's social fabric.

- **Islamic Influence in Coastal Towns**: Coastal cities like **Mombasa** became significant centers of Islamic learning, where **Quranic schools** (madrassas) and **mosques** were established. The famous **Old Mosque** in Mombasa, dating back to the 15th century, stands as a testament to the deep-rooted Islamic heritage.

2. The Spread of Islam in Kenya's Interior

a) Conversion through Trade and Intermarriage

While Islam initially flourished along the coast, its spread into the interior of Kenya was gradual. The spread of Islam into the Kenyan hinterlands was often through **trade routes** and **intermarriage**. As **Muslim traders** and **settlers** ventured into the interior regions, local communities began to adopt Islam.

The **Wazigua**, **Digo**, and **Chaga** ethnic groups, among others, gradually embraced Islam, often through their interactions with the coastal Swahili traders.

b) Influence of Sufi Orders

The **Sufi orders** also played a critical role in spreading Islam into Kenya's interior. The Sufi traditions of **mysticism**, **spirituality**, and **community engagement** helped make Islam more accessible and appealing to various ethnic groups, with the teachings of prominent **Sufi saints** reaching areas such as **Coast**, **Eastern Kenya**, and **Nyanza**. The **Qadiriyya** and **Shadhiliyya** orders were among the most influential in Kenya.

3. slam During the Colonial Period

a) Islam and the British Colonial Rule

When **British colonialism** began in Kenya in the late 19th century, Muslims in the coastal region found themselves under **foreign rule**, which often sought to limit Islamic influence in favor of **Christian missionaries**. Despite this, the Muslim community remained resilient and continued to practice and spread their faith.

- **Impact on Muslim Institutions**: The British colonial government set up schools and institutions that often reflected Western values, and this impacted the **Islamic educational system** in Kenya. However, Muslim communities persisted in maintaining their own **schools**, teaching their children **Quranic studies** and traditional Islamic knowledge.

b) Role of Islam in the Resistance Against Colonialism

During the colonial period, many Muslims in Kenya resisted British rule. Muslims in the coastal regions, particularly in **Mombasa** and **Lamu**, were prominent in the early anti-colonial movements. The **Mau Mau** rebellion, which was a major struggle for Kenyan independence, had several Muslim participants, particularly from the coastal regions.

4. Islam in Post-Independence Kenya

a) The Growth of Islam

After **Kenya's independence** in 1963, Islam continued to grow both in the coastal areas and inland. Many of the **Muslim leaders** who had participated in the **anti-colonial struggle** became influential figures in the post-independence period.

Islam became a significant part of the nation’s religious and

social landscape, with Muslims playing key roles in politics, business, and education.

- **Demographics**: Today, Muslims in Kenya make up approximately **10-15%** of the total population. The majority of Muslims are concentrated along the coast, but there is a growing Muslim presence in major cities like **Nairobi**, **Kisumu**, and **Nakuru**.

b) Islamic Education and Institutions

Islamic educational institutions such as **madrassas**, **Islamic schools**, and **universities** have flourished in Kenya. These institutions offer both religious and secular education, providing a balanced approach to the development of young Muslims in the country. In Nairobi, the **Islamic University of Kenya** and other institutions serve as educational centers for the Muslim community.

c) Islam and Politics

Islamic political movements have also emerged in Kenya, with parties and organizations advocating for the rights of Muslims in the country. The **Supreme Council of Kenya Muslims (SUPKEM)** has been a prominent advocacy group working to promote the interests of Muslims in Kenya, particularly in the areas of education, religious freedom, and political representation.

- The **Sharia law** debate in Kenya has been a subject of discussion, with some segments of the Muslim population calling for its adoption in matters related to family law, marriage, and inheritance. While the Kenyan constitution guarantees **freedom of religion**, the debate over the integration of Islamic principles into the legal system continues.

5. Contributions of Islam to Kenyan Society

Islam has had a profound influence on various aspects of Kenyan life, contributing to its **cultural diversity**, **religious pluralism**, and **social cohesion**. Some of the key contributions include:

a) Cultural Heritage

Islamic culture in Kenya has influenced local art, architecture, music, and food. The Swahili culture, which is closely tied to Islam, has shaped the region's identity, and **Swahili** is widely spoken across the Kenyan coast. The **Swahili Coast**'s historical mosques, old towns, and **Islamic architecture** remain
important symbols of Kenya's Islamic heritage.

b) Social Contributions

The Muslim community in Kenya has also contributed to the development of healthcare, **charitable organizations**, and **community service**. Many Muslim-run organizations focus on **healthcare services**, **poverty alleviation**, and **education** for marginalized communities.

c) Islamic Festivals and Celebrations

Kenya's Muslim population actively celebrates Islamic festivals such as **Eid al-Fitr** and **Eid al-Adha**, as well as observing fasting during **Ramadan**. These celebrations have become part of the national cultural calendar, and many non-Muslims also participate in the festivities.

d) Peace and Tolerance

Islam has also played a role in promoting **peace** and **interfaith dialogue** in Kenya. In a country with a diverse population of various religious and ethnic backgrounds, Muslim leaders have often been involved in peacebuilding efforts, particularly in regions affected by conflict and inter-ethnic violence.

6. Contemporary Challenges and Opportunities for Islam in Kenya

While Islam has made significant contributions to Kenya's heritage, there are ongoing challenges and opportunities facing the Muslim community today:

a) Socioeconomic Challenges

Many Muslims in Kenya, particularly in the coastal areas, still face socio-economic challenges, including **poverty**, **unemployment**, and **marginalization**. There are efforts from within the Muslim community to address these issues through community-based initiatives and collaborations with the government.

b) Radicalization and Extremism

Like many other parts of the world, Kenya has faced the challenge of **radicalization** and the influence of **extremist ideologies**. However, religious leaders in Kenya have been working diligently to counter these ideologies through **education**, **community engagement**, and **spreading peaceful interpretations of Islam**.

c) Integration of Sharia

The debate over the integration of **Sharia law** into Kenya's legal system continues to be a point of contention for some Muslims, especially in family law matters. There are calls for the recognition of **Sharia courts** to deal with matters such as **marriage**, **divorce**, and **inheritance**, but these issues need to be carefully balanced with the **constitutional framework** that guarantees religious freedom and equality.

UNITY OF MUSLIMS

The concept of **unity** (Arabic: **Ummah**) holds immense significance in Islam. It is an essential principle that not only defines the relationship between Muslims but also influences their collective identity, social relations, and contributions to society at large. The **unity of Muslims** transcends geographical, ethnic, cultural, and linguistic boundaries, emphasizing the bond of faith and the shared mission of promoting righteousness, justice, and peace.

1. Unity in the Quran and Sunnah

a) The Quranic Foundation of Unity

The **Quran** calls for the unity of the Muslim Ummah in numerous verses, highlighting the importance of cooperation, mutual support, and collective action based on shared faith and values.

- **Unity as a Source of Strength**:
  "And hold firmly to the rope of Allah all together and do not become divided..."
  (Quran, 3:103)
  This verse urges Muslims to stay united under the guidance of **Allah's teachings**, represented by His **Book** and **Prophet**. The term "rope of Allah" metaphorically refers to the **Quran** and the **authentic teachings** of Islam, emphasizing that unity is not just about physical alignment but also about adhering to **Islamic principles**.
- **The Ummah's Collective Identity**:
  "Indeed, this Ummah of yours is one Ummah, and I am your Lord, so worship Me."
  (Quran, 21:92)

This verse underlines the idea that Muslims are one **community** bound by **shared faith** and a common goal of worshiping and obeying Allah.

b) The Sunnah and the Prophet's Teachings on Unity

The **Prophet Muhammad (peace be upon him)** is considered the **ultimate role model** for maintaining unity within the Muslim community. His teachings emphasized love, cooperation, mutual support, and reconciliation, which were critical for ensuring the stability of the **early Muslim community**.

- **Strength in Unity**:
  The Prophet Muhammad (peace be upon him) said, *"The believers are like a single body: when one part of the body aches, the whole body responds with sleeplessness and fever."*
  (Sahih Muslim)
  This hadith beautifully describes the **interconnectedness** and mutual concern that should exist between Muslims. If one member of the Ummah suffers, all should feel the pain and work toward alleviating it.
- **Avoidance of Division**:
  The Prophet Muhammad (peace be upon him) also said, *"Do not hate one another, and do not be jealous of one another, and do not desert one another. And O Allah's worshipers, be brothers."*
  (Sahih Bukhari)
  This narration highlights the importance of maintaining harmony, kindness, and brotherhood. The Prophet urged Muslims to avoid actions that could cause division, such as hatred, jealousy, or alienation, which disrupt unity.

2. The Importance of Unity for the Muslim Ummah

a) Strengthening the Social Fabric

Unity in Islam ensures that the Muslim community remains strong and resilient in the face of challenges. It allows Muslims to work together to address common problems, whether social, political, or economic. When Muslims unite, they are better able to:

- **Support the oppressed**: Through cooperation, Muslims can more effectively help those who are marginalized, impoverished, or oppressed.
- **Contribute to peace**: A united Muslim community can advocate for global peace, standing against injustice, extremism, and tyranny.
- **Uphold religious obligations**: Unity facilitates collective actions like **prayer**, **fasting**, and **charity** (e.g., **Zakat**) that benefit both the individuals and the wider community.

b) Avoiding Fragmentation and Divisiveness

Islamic unity also acts as a preventive measure against **fragmentation** and **sectarianism**. **Division** within the Muslim Ummah, whether along ethnic, sectarian, or political lines, weakens the community and creates opportunities for exploitation by external forces. The Quran and Hadith frequently warn against discord:

- **Quran on Avoiding Division**:
  "Do not dispute with one another, lest you lose courage and your strength depart."
  (Quran, 8:46)

This verse stresses that internal divisions lead to **weakness** and **defeat**. The strength of the Ummah lies in its **unity**.

c) Reflecting Islamic Values to the World

Unity among Muslims also serves as a model for the broader world. The example of a united Muslim community is one of **brotherhood**, **tolerance**, and **justice**, values that can inspire other groups to work together for the greater good.

3. Factors that Strengthen Unity

a) Shared Beliefs and Practices

The foundation of unity lies in **shared beliefs** in the oneness of Allah, the prophethood of Muhammad (peace be upon him), and the core practices of Islam, such as **prayer**, **fasting**, and **charity**. These common beliefs and actions create a powerful bond between Muslims.

- **The Five Pillars of Islam**:
  Every Muslim is bound by the same core **obligations**, including the **Shahada** (faith declaration), **Salah** (prayer), **Zakat** (charity), **Sawm** (fasting), and **Hajj** (pilgrimage). The shared commitment to these practices is a constant reminder of the **unity of purpose**.

b) Interfaith and Intra-faith Dialogue

Effective dialogue, both within the Muslim community (intra- faith) and with other religious communities (interfaith), strengthens understanding and cooperation. By engaging in dialogue, Muslims can resolve differences and promote peace, tolerance, and shared objectives. **Mutual respect** and **understanding** help counter negative stereotypes, fostering a spirit of cooperation.

c) he Role of Islamic Leadership

Leaders within the Muslim community play an important role in preserving unity. Their responsibility is to:

- **Promote inclusivity**: Islamic leaders should focus on building bridges between different sects and ethnic groups within the Muslim community.
- **Address grievances**: Leaders must be responsive to the needs of the community and work toward resolving conflicts.
- **Uphold Islamic principles**: Leaders should ensure that Islamic teachings about **justice**, **brotherhood**, and **compassion** are upheld.

d) Emphasis on Social Justice and Equality

A key principle that strengthens unity is the **commitment to justice** and **equality**. Islam teaches that all Muslims are equal in the eyes of Allah, regardless of race, ethnicity, or social status.
Addressing social inequalities and injustices within the Muslim community can foster unity.

- **Prophet Muhammad's Last Sermon**:
  "All mankind is from Adam and Eve. An Arab has no superiority over a non-Arab, and a non-Arab has no superiority over an Arab; a white has no superiority over a black, and a black has no superiority over a white; none have superiority over another except by piety and good action."
  This powerful statement encapsulates the essence of **equality** in Islam and is a foundation for **unity**.

4. Challenges to Unity and How to Overcome Them

a) Sectarianism and Differences

One of the biggest challenges to Muslim unity is the **sectarianism** between different Islamic groups (e.g., Sunni and Shia), which can sometimes lead to tension and conflict. It is important to remind the Ummah that **theological differences** should not overshadow the **common principles** of Islam.

- **Overcoming Sectarianism**:
  Muslims should focus on the common **beliefs** and **values** they share rather than on differences in practices. It is essential to foster respect and understanding, emphasizing that **diversity** in opinion is a natural aspect of Islamic jurisprudence.

b) Political and Social Divisions

Political disagreements can also undermine unity. Disputes between Muslim-majority countries or political factions can lead to divisions that affect the global Muslim community.

- **Promoting Unity in Politics**:
  Islamic leaders and scholars should encourage **cooperation** rather than confrontation and emphasize the importance of **peaceful dialogue** to resolve political disputes. The Ummah must prioritize the **common good** over individual or national interests.

c) Cultural Differences

The global Muslim community is ethnically diverse, and cultural practices can sometimes lead to misunderstandings. However, **Islamic unity** transcends cultural differences, and Muslims must be encouraged to appreciate their diverse backgrounds while maintaining a shared Islamic identity.

- **Respecting Cultural Diversity**:
  The teachings of Islam encourage the **celebration of diversity** as a sign of Allah's creation. The Quran says: *"O mankind, indeed We have created you from male and female and made you peoples and tribes that you may know one another."*
  (Quran, 49:13)
  Cultural differences should be respected, and the focus should remain on unity in faith and purpose.

MUSLIM INSTIITUTIONS:

- ✓ **Mosques,**
- ✓ **Madrasa,**
- ✓ **Muslim N.G.O.**

1. Mosques (Masjid)

a) Spiritual and Religious Significance

The **mosque** (Arabic: **Masjid**) is one of the most important institutions in Islam. It is the center for religious worship, where Muslims gather for **daily prayers** (Salah), **Jumu'ah** (Friday prayer), and other significant events such as **Eid prayers**.

- **Place of Worship**: The primary role of the mosque is to provide a space for Muslims to offer their **obligatory prayers** (Salah), especially the five daily prayers. It is also the place for collective worship on **Fridays** for the **Jumu'ah prayer**.
- **Spiritual Leadership**: The mosque is often led by an **imam**, who is responsible for guiding the community in prayer, giving sermons (khutbah), and offering spiritual guidance on various issues.

b) Educational Role

Beyond its role as a place of worship, the mosque is also an educational center, offering religious teachings and moral guidance.

- **Islamic Studies**: Many mosques host **Quranic schools** or **Islamic classes** for children and adults, teaching them how to read the **Quran**, learn its meanings, and understand Islamic principles. These classes are crucial for the religious education of the community.

- **Community Center**: Mosques also serve as community hubs, offering a space for social interaction, support, and

engagement. They host lectures, seminars, and discussion groups on religious, social, and political issues.

c) Charity and Social Services

Mosques often provide **charitable services** to the community, especially for the poor and needy. Many mosques run programs for:

- **Zakat** (obligatory charity)
- **Sadaqah** (voluntary charity)
- **Food banks** for the homeless and underprivileged.

They also facilitate the **funeral rites** of Muslims and offer support to families in times of grief.

2. Madrassas (Islamic Schools)

a) Educational Role

A **madrassa** is an educational institution focused on teaching Islamic subjects, such as the **Quran**, **Hadith**, **Fiqh** (Islamic jurisprudence), and **Aqeedah** (Islamic theology). While madrassas are often associated with **religious studies**, many also offer secular education, providing a well-rounded curriculum.

- **Religious Education**: Madrassas play a central role in transmitting **Islamic knowledge**. They teach students to read, memorize, and understand the Quran, study **Prophet Muhammad's (peace be upon him)** sayings (Hadith), and learn about Islamic ethics and law.
- **Islamic Scholars**: Many scholars (ulama) are trained in madrassas. These scholars later play a key role in guiding the Muslim community, issuing fatwas (legal opinions), and providing **Islamic leadership**.

b) Secular Education

In some parts of Kenya, madrassas also provide **secular education** to students, including areas like **mathematics**, **science**, **literature**, and **social studies**. This helps ensure that students are not only well-versed in religious teachings but also equipped with the skills necessary for modern society.

- **Youth Development**: Many madrassas cater to young children and adolescents, helping them acquire foundational knowledge while nurturing their **spiritual growth**. They are crucial for instilling **moral values** and a sense of Islamic identity at an early age.

c) Social and Cultural Role

Madrassas also serve as cultural institutions that preserve and transmit Islamic heritage. They help maintain the **Arabic language** and other aspects of **Islamic culture**, including **Islamic art**, **literature**, and **music** in certain traditions.

3. Muslim NGOs (Non-Governmental Organizations)

a) Role in Humanitarian Efforts

Muslim NGOs play an essential role in addressing the social, economic, and humanitarian needs of Muslim communities and beyond. These organizations often operate locally, nationally, and globally, providing aid, support, and services to various vulnerable populations, regardless of their religion or ethnicity.

- **Charitable Work**: Muslim NGOs are deeply involved in **charity** and humanitarian assistance, particularly in areas affected by **poverty**, **conflict**, **natural disasters**, and **health crises**. They provide essential

services such as **food aid**, **medical care**, **education**, and **disaster relief**.

- **Examples of Muslim NGOs**: Some well-known Muslim NGOs include:

- **The Red Crescent**: The humanitarian arm of the **Red Cross** in many Muslim-majority countries.
- **Islamic Relief Worldwide**: A global humanitarian organization that provides emergency relief, long- term development assistance, and programs that aim to tackle poverty.
- **World Assembly of Muslim Youth (WAMY)**: Focuses on education, charity, and youth development in Muslim communities.

b) Promoting Social Justice

Muslim NGOs also advocate for social justice, particularly in areas related to **human rights**, **education**, **gender equality**, **economic empowerment**, and **environmental sustainability**.

- **Islamic Perspective on Social Justice**: Many Muslim NGOs are motivated by **Islamic principles** of justice, equality, and compassion. They believe that helping others is a form of worship and an essential aspect of being a responsible Muslim.
- **Advocacy and Empowerment**: Muslim NGOs often work to **empower marginalized communities** by providing resources and advocating for their rights. They focus on issues such as **discrimination**, **refugee rights**, **healthcare access**, and **economic development**.

c) Promoting Interfaith Dialogue

Many Muslim NGOs engage in **interfaith dialogue** and cooperation, working with organizations of other faiths to promote mutual understanding, peace, and cooperation. These efforts are especially crucial in addressing misconceptions about Islam and building bridges between different communities.

- **Peacebuilding**: By focusing on shared values like justice, compassion, and respect, Muslim NGOs play an important role in promoting **peace** in areas where **religious tension** or **conflict** exists.